



POLICE DEPARTMENT

May 19, 2025

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In the Matter of the Charges and Specifications :
- against - :

Police Officer Anthony Lombardi :
Tax Registry No. 967967 :
102 Detective Squad :

Case No. :
2024-30538 :

Police Officer Ryan McCrain :
Tax Registry No. 966701 :
113 Precinct :

Case No. :
2024-30539 :

Police Officer Thomas Sinclair :
Tax Registry No. 966341 :
113 Precinct :

Case No. :
2024-30540 :
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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Kenneth Crouch & Casey Graetz, Esqs.
Civilian Complaint Review Board
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For the Respondents:

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To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2024-30538

1. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi frisked a bag belonging to § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi searched a bag belonging to § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 9, Paragraph 44

INVESTIGATIVE
ENCOUNTERS

3. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi questioned § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

4. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi frisked § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

5. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a

member of the New York City Police Department, in that Officer Lombardi searched § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 43

INVESTIGATIVE
ENCOUNTERS

6. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi failed to provide § 87(2)(b) with a business card without police necessity.

A.G. 304-11

COMPLIANCE WITH NYC
RIGHT TO KNOW ACT

7. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi took law enforcement action based upon actual or perceived race.

A.G. 304-17, Page 1, Paragraph 1

DEPARTMENT POLICY
PROHIBITING RACIAL
PROFILING AND BIAS-
BASED POLICING

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

Disciplinary Case No. 2024-30539

1. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain questioned an individual without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York

City Police Department, in that Officer McCrain frisked an individual without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

3. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain questioned § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

4. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer McCrain seized § 87(2)(b) property without sufficient legal authority

A.G. 304-06 Page 1, Paragraph 1

PROHIBITED CONDUCT

5. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of the 113 Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain searched § 87(2)(b) property without sufficient legal authority.

P.G. 212-11, Page 9, Paragraph 44

INVESTIGATIVE
ENCOUNTERS

6. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct, in the vicinity of Lakeview Lane and 122nd Avenue and the 113 Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain took law enforcement action based upon actual or perceived race.

A.G. 304-17, Page 1, Paragraph 1

DEPARTMENT POLICY
PROHIBITING RACIAL
PROFILING AND BIAS-
BASED POLICING

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

Disciplinary Case No. 2024-30540

1. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair questioned § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair frisked § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

3. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair questioned § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

4. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair frisked § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

5. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of 113 Precinct stationhouse, Queens County, abused his authority as a member of the New York City

Police Department, in that Officer Sinclair searched the vehicle in which § 87(2)(b) was an occupant without sufficient legal authority.

P.G. 212-11, Page 9, Paragraph 44

INVESTIGATIVE
ENCOUNTERS

6. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer Sinclair seized § 87(2)(b) property without sufficient legal authority.

A.G. 304-06 Page 1, Paragraph 1

PROHIBITED CONDUCT

7. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of the Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair took law enforcement action based upon actual or perceived race.

A.G. 304-17, Page 1, Paragraph 1

DEPARTMENT POLICY
PROHIBITING RACIAL
PROFILING AND BIAS-
BASED POLICING

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on December 18 and 19, 2024. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The CCRB called Dr. Alix Winter and the complainant, § 87(2)(b) as witnesses, and introduced evidence of the Respondents' Body-Worn Camera ("BWC") footage. Each Respondent testified on their own behalf. Having evaluated all of the evidence in this matter, I find as follows:

Respondent Lombardi:

Specification 1 (Frisk of Bag belonging to § 87(2)(b) Not Guilty
Specification 2 (Search of Bag belonging to § 87(2)(b) Guilty
Specification 3 (Questioning § 87(2)(b) Guilty
Specification 4 (Frisk of § 87(2)(b) person): Guilty
Specification 5 (Search of § 87(2)(b) person): Guilty
Specification 6 (Failure to Provide Business Card): Guilty
Specification 7 (Taking Law Enforcement Action Based on Race): Not Guilty
Recommended penalty for Respondent Lombardi: 6 vacation days

Respondent McCrain:

Specification 1 (Questioning Unidentified Individual): Guilty
Specification 2 (Frisk of Unidentified Individual): Guilty
Specification 3 (Questioning § 87(2)(b) Guilty
Specification 4 (Seizure of § 87(2)(b) vehicle): Guilty
Specification 5 (Search of § 87(2)(b) vehicle): Guilty
Specification 6 (Taking Law Enforcement Action Based on Race): Not Guilty
Recommended penalty for Respondent McCrain: 12 vacation days

Respondent Sinclair:

Specification 1 (Questioning § 87(2)(b) Guilty
Specification 2 (Frisk of § 87(2)(b) Guilty
Specification 3 (Questioning § 87(2)(b) Guilty
Specification 4 (Frisk of § 87(2)(b) Guilty
Specification 5 (Search of § 87(2)(b) vehicle): Guilty
Specification 6 (Seizure of § 87(2)(b) vehicle): Guilty
Specification 7 (Taking Law Enforcement Action Based on Race): Not Guilty
Recommended penalty for Respondent Sinclair: 12 vacation days

ANALYSIS

The following facts are undisputed. On December 20, 2022, Respondents Ryan McCrain and Thomas Sinclair were assigned to the Neighborhood Safety Team (hereinafter "NST") of the 113 Precinct. At approximately 2100 hours, in proximity of the intersection of Lakeview Lane and 122nd Avenue, Respondents pulled over a BMW driven by § 87(2)(b) to address an air freshener hanging from his rearview mirror (a VTL violation). It should be noted that all

parties agreed and stipulated at trial that there was sufficient legal authority to stop § 87(2)(b)

§ 87(2)(b) car on the date in question. § 87(2)(b) § 87(2)(b) and an unidentified male were passengers in § 87(2)(b) vehicle. All four were young, Black men.

Respondent McCrain asked § 87(2)(b) for his driver's license and registration. § 87(2)(b) provided the car registration and his pedigree information. Respondent McCrain then conducted a license check on his Department-issued phone and discovered that § 87(2)(b) license was suspended. Respondents ordered § 87(2)(b) and his passengers out of the car. Respondent McCrain asked the unidentified male if he had any weapons on him, requested consent to frisk, and frisked him. Respondent Sinclair also frisked § 87(2)(b) and § 87(2)(b) after asking for consent to do so. Respondent McCrain asked § 87(2)(b) if there was anything illegal in the car and requested consent to search the vehicle. § 87(2)(b) refused to give consent, but informed the officer that there was marijuana in the car. Ultimately, § 87(2)(b) was arrested for driving with a suspended license.

§ 87(2)(b) vehicle was seized and brought to the 113 Precinct, where Respondents McCrain and Sinclair conducted what they characterized as an inventory search of the vehicle. According to Respondents, after conducting a search of § 87(2)(b) car, they were informed by their supervisor that the arrest would be reassigned. They had no further contact with § 87(2)(b) and resumed patrol. Respondents McCrain and Sinclair did not prepare a Vehicle Report, Stop Report, or a Consent Search Report for this incident.

Six hours after the initial stop, at approximately 3:00 a.m. on December 21, 2022, § 87(2)(b) was released from police custody after being issued a Desk Appearance Ticket. § 87(2)(b) picked up § 87(2)(b) at the 113 Precinct and was driving in his vehicle. While at the intersection of Foch Boulevard and Guy R. Brewer Boulevard in Queens, police

officers from the 113 Precinct stopped the car again for the air freshener that was still hanging from the rearview mirror. Respondents McCrain and Sinclair were not involved in this second stop. Moreover, the officers from the 113 Precinct who initiated this stop were not brought up on charges by CCRB. Additional officers, including Respondent Anthony Lombardi, arrived on scene later to provide back-up. At the time of the stop, there were three passengers in the vehicle.

§ 87(2)(b) was the driver, § 87(2)(b) was seated in the front passenger seat and § 87(2)(b) was seated in the rear.

During the car stop, Respondent Lombardi asked § 87(2)(b) to exit the vehicle and proceeded to frisk and search a bag that he held on his wrist. Respondent Lombardi then questioned, frisked, and searched § 87(2)(b). No contraband was recovered from the bag or on § 87(2)(b) person. Respondent Lombardi did not provide a business card to § 87(2)(b) at the conclusion of the encounter. The stop concluded after the officers received information from § 87(2)(b) about the previous stop.

1. December 20, 2022 Stop by Respondents McCrain and Sinclair

§ 87(2)(b) the complainant, testified that on the evening of December 20, 2022, he was driving his father's vehicle, in the company of three friends, on his way to deliver food for DoorDash. He described his father's car as a blue BMW with tinted windows that he believed to be legal. § 87(2)(b) testified that he had a "Little Tree" air freshener hanging from his rearview mirror. He also acknowledged that he was driving with a suspended license. § 87(2)(b) reasoned that he had to drive with a suspended license because making DoorDash deliveries was the only way he could supplement his income and afford to pay DMV the money required to remove the suspension on his license. (Tr. 155-58)

As § 87(2)(b) approached 122nd Avenue and Lakeview Lane in Queens County, his car was stopped by police. Two officers exited their RMP and approached his vehicle in a “regular manner” (one officer on each side of his vehicle) and requested his license and registration. According to § 87(2)(b) he complied and provided the documentation. The officers then asked § 87(2)(b) to exit the vehicle. § 87(2)(b) recalled that upon exiting, the officers proceeded to “search” his person. He described the search as being “patt[ed] down...anywhere that [he] could have anything.” (Tr. 159-61)

According to § 87(2)(b) the officers then ordered the remaining occupants out of the vehicle and patted them down in the same manner as they had when they “searched” him. § 87(2)(b) recollected that the officers requested to search his vehicle approximately “two to three times,” but he denied each request. After the officers called “somebody” on their radios, additional officers appeared on scene. § 87(2)(b) was then placed in handcuffs and transported to the precinct in an RMP. (Tr. 161-62)

On the way to the precinct, § 87(2)(b) observed his father’s vehicle being towed. He testified that two of his passengers had a license and could have taken his car. After being processed at the 113 Precinct, he was issued a Desk Appearance Ticket and released “around 12:00 to 1:00” the next morning (December 21, 2022). (Tr. 162-64)

§ 87(2)(b) acknowledged that the officers did not use profane or racially charged language nor did they raise their voices to him during the encounter. On cross-examination, he further conceded that there was “nothing about these officers” or their comportment that made him believe he was being racially profiled. (Tr. 181-82, 187)

Respondent McCrain testified that on the evening of December 20, 2022, he was on patrol with Respondent Sinclair in an unmarked RMP. Respondent McCrain testified that he

observed a vehicle with an air freshener hanging from the rearview mirror, a VTL violation because it obstructs the driver's view. According to Respondent McCrain, he could not see the occupants of the vehicle clearly. He could only discern the silhouettes of four heads inside. Respondent Sinclair and his partner proceeded to initiate a traffic stop. (Tr. 212-14)

Respondent McCrain requested the driver's license and registration, but § 87(2)(b) could only produce the vehicle's registration. Using the pedigree information provided to him by § 87(2)(b) Respondent McCrain conducted a "license check" on his Department-issued phone and discovered that his license had been suspended. Respondent McCrain explained that in this scenario officers have discretion to either arrest the operator or release them after issuing a verbal warning. Respondent McCrain could not recall why they decided to arrest in this instance, but maintained that race did not play a role in his decision making. (Tr. 216-19)

Respondent McCrain then ordered § 87(2)(b) and a passenger seated in the rear to step out of the vehicle. Respondent stated that he did not initially frisk § 87(2)(b) because "there was no need to," but then frisked the passenger because he received "consent" to do so. According to Respondent McCrain's testimony, he did not have any reason to believe that said passenger was armed, but asked if he had any weapons because "it's an officer safety thing." Respondent McCrain conceded that he did not inform that passenger that he could withhold his consent. The frisk of the passenger yielded no results. (Tr. 219, 230, 240-41)

Respondent McCrain asked § 87(2)(b) for consent to search the vehicle. § 87(2)(b) asserted that there was no reason for him to conduct a search. Respondent McCrain responded that it was "up to [him]" and did not search the vehicle on scene. Respondent McCrain did, however, ask § 87(2)(b) if there was anything in the vehicle. § 87(2)(b) disclosed that there was "a little weed." (CCRB Ex. 2 at 6:28-6:50) Respondent McCrain

recalled smelling marijuana but could not remember whether he observed any lit marijuana in the vehicle in plain view. At trial, Respondent McCrain testified that he observed a “little bit of smoke emanating from the vehicle.” However, when questioned about a previous interview with CCRB where he stated that he did not see any smoke, Respondent McCrain stated he did not recall that interview or having given that answer. (Tr. 220, 226-27)

Respondent McCrain testified that although they had already made the decision to arrest § 87(2)(b) they waited for a supervisor to arrive on scene before placing him in handcuffs. Respondent McCrain stated that he then searched § 87(2)(b) “incident to the lawful arrest.” On cross-examination, Respondent McCrain acknowledged that one of the passengers offered to take temporary custody of § 87(2)(b) vehicle, but Respondent McCrain told him the car had to go back to the precinct and could not be released on scene. § 87(2)(b) and his vehicle were then transported to the 113 Precinct for processing. Respondent McCrain maintained that he did not use any threatening, profane, or racially charged language throughout this encounter. (Tr. 221-22, 231-33)

At the 113 Precinct, Respondent McCrain conducted an inventory search of the vehicle, but he did not fill out a Property Clerk Invoice or an itemized list of valuables recovered from the car. He reasoned that these documents were not created because his supervisor reassigned the arrest. Respondent McCrain also acknowledged that he failed to complete a Vehicle Report and a Consent Search report in regard to his interaction with the other passengers—two reports that are required to be documented regardless of reassignment. (Tr. 233-36, 240)

Respondent Sinclair provided a substantially similar version of the encounter. He recalled that as he approached the passenger side of § 87(2)(b) vehicle, he “observed smoke emanating from the rear window,” which he recognized as “marijuana smoke” from the odor.

Before asking the individuals for identification, Respondent Sinclair informed them that “they can’t smoke in the car.” (Tr. 245-47, CCRB Ex. 3 at 01:33-01:36) A short time later, all the occupants were asked to exit and stand at the back of the vehicle, which Officer Sinclair reasoned was “for officer safety purposes.” (Tr. 248)

According to Respondent Sinclair, all occupants were frisked prior to him learning that § 87(2)(b) had a suspended license. Respondent Sinclair testified that he did not complete the paperwork to document the frisks he performed because it “must have slipped [my] mind” after the arrest was reassigned. Respondent Sinclair also testified that he and his partner searched the vehicle at the precinct but admitted that he did not complete the required paperwork, although he was aware that he was obligated to do so. (Tr. 247-49, 253-55)

When Respondent Sinclair was asked if there was anything about this vehicle’s occupants’ physical appearance that caused the stop, Officer Sinclair responded, “No.” He also asserted that he has never used race as the “sole” purpose for making a car stop or for taking law enforcement action (Tr. 250, 257-58)

a. Specifications 1 & 2: Questioning & Frisking of Unidentified Individual by Respondent McCrain

Respondent McCrain is charged with questioning and frisking an unidentified individual/occupant of the vehicle without sufficient legal authority. Patrol Guide 212-11 describes the types of encounters a uniformed member of the service may initiate with a member of the public during the course of his or her official duties, the level of knowledge required for each type of encounter, the scope of a police officer’s authority for each type of encounter, the measures that are permissible to protect uniformed members of the service from injury, and the procedures to be followed by a member of the service during these encounters. These rules,

initially established by *People v. De Bour*, 40 N.Y. 2d 210 (1976), apply when the individuals being questioned, frisked, and searched are pedestrians or occupants of a vehicle.

The *De Bour* framework, which is incorporated by reference in Patrol Guide 212-11, sets out four levels of police-citizen encounters, outlining the escalating measures of suspicion necessary to justify each. During a Level 1 encounter or “request for information,” a police officer may approach an individual if he or she has an “objective credible reason” to approach the civilian. P.G. 212-11 specifically states that this type of encounter does not require any suspicion of criminal activity, emphasizing:

The objective is to gather information and not to focus on the person as a potential suspect. A police officer may seek information related to the reason(s) the person was approached, such as the person’s name, address and destination, if those questions are related to the objective credible reason for the approach. The officer may not ask accusatory questions.

However, “[o]nce the officer asks more pointed questions that would lead the person approached reasonably to believe that he or she is suspected of some wrongdoing . . . the officer is no longer merely seeking information.” (*Id.*) This “common-law right of inquiry, a wholly separate level of contact, is ‘activated by a founded suspicion that criminal activity is afoot.’” *People v. Hollman*, 79 N.Y.2d 181 (1992), quoting *De Bour*, 40 N.Y.2d at 223. According to P.G. 212-11, “upon a founded suspicion of criminality, the officer may approach a person to ask accusatory questions and may seek consent to search; however, consent must be voluntarily given ... The officer may engage protective measures, when he or she has a reasonable concern for his or her safety.” However, “a police officer's question as to whether an individual has a weapon is a common-law inquiry requiring founded suspicion of criminality.” *See People v. Garcia*, 20 N.Y.3d 317, 322 (2012), citing *People v. Ward*, 22 A.D.3d 368 (1st Dept. 2005).

Respondent McCrain's BWC recording captured him asking the unidentified civilian in the back passenger seat to exit the car. Immediately thereafter, Respondent McCrain asked, "Do you have any weapons on you?" The unidentified civilian shook his head and answered, "No." Respondent McCrain followed up by asking, "Do you mind if I just pat you down?" The unidentified civilian replied, "Yeah, yeah, yeah," and raised his arms. Respondent McCrain did not inform the unidentified civilian that he could refuse consent. (See CCRB Ex. 2 at 5:30-6:22)

During his testimony, Respondent McCrain did not articulate an objective, credible reason to engage with the unidentified individual in the back seat of the car, let alone founded suspicion of criminality. In fact, when asked why he took police action with regard to this individual, Respondent McCrain testified that he did so for "officer safety," without further explanation. (Tr. 230, 239) While an officer may engage in protective measures in a Level 2 encounter when he or she has a reasonable concern for his or her safety, Respondent McCrain did not articulate any such factors that would lead him to be concerned for his safety.

Respondent McCrain's questioning was not aimed at gathering information; it was an unambiguous attempt to ascertain whether this individual was in possession of a weapon. Since Respondent McCrain admitted that he had no reason to believe that this individual was armed or posed a danger, he did not have the requisite level of suspicion to elevate this to a Level 2 encounter. In the absence of articulable founded suspicion, Respondent McCrain should not have even asked the individual for consent to frisk, let alone conduct the frisk.

Accordingly, this Tribunal finds Respondent McCrain guilty of Specifications 1 and 2.

b. Specification 3: Questioning of § 87(2)(b) by Respondent McCrain

Respondent McCrain is charged with questioning § 87(2)(b) without sufficient legal authority. Respondent McCrain's BWC captured this interaction. After removing all the

occupants from the vehicle, Respondent McCrain asked § 87(2)(b) a series of questions including, “Do you guys have anything illegal in the car?” § 87(2)(b) shook his head, and Respondent McCrain asked, “Do you mind if we search it?” § 87(2)(b) shook his head again and replied, “There’s nothing in the car, honestly, no.” Respondent McCrain repeated, “You would be okay with us searching it?” § 87(2)(b) said, “There would be no reason to.” Respondent McCrain replied, “It’s up to you.” § 87(2)(b) reiterated, “I don’t see no reason to. There’s nothing in the car. . . It’s just the weed. A little bit of weed.” (CCRB Ex. 2 at 6:25-6:50)

During the hearing, Respondent McCrain testified that after he ran a license check, he determined that § 87(2)(b) license was suspended.¹ Respondent McCrain proceeded to order § 87(2)(b) and the other passengers out of the car and began questioning § 87(2)(b) about the contents of his car. Respondent McCrain pursued an investigation consistent with his NST role of interdicting serious crime, but one that was unsupported by the underlying basis for the stop (an air freshener hanging from a rearview mirror) and the suspended license.

As discussed in further detail below, Patrol Guide 209-26 delineates the procedures to be undertaken when a uniformed member of the service stops a vehicle and discovers that the operator is driving with a suspended driver’s license. These procedures do not require officers to invoice the contents of the vehicle. Therefore, Respondent McCrain’s questions regarding the

¹ VTL § 511 defines driving with a suspended license as “aggravated unlicensed operation of a motor vehicle in the third degree” and states: “(a) A person is guilty of the offense of aggravated unlicensed operation of a motor vehicle in the third degree when such person operates a motor vehicle upon a public highway while knowing or having reason to know that such person’s license or privilege of operating such motor vehicle in this state or privilege of obtaining a license to operate such motor vehicle issued by the commissioner is suspended, revoked or otherwise withdrawn by the commissioner. (b) Aggravated unlicensed operation of a motor vehicle in the third degree is a misdemeanor.”

contents of § 87(2)(b) vehicle and requesting consent to search it, exceeded the reasonable bounds of this investigation. Accordingly, I find Respondent McCrain guilty of the misconduct set forth in Specification 3.

c. Specifications 1-4: Questioning & Frisking of § 87(2)(b) and § 87(2)(b) by Respondent Sinclair

Respondent Sinclair is accused of questioning and frisking § 87(2)(b) and § 87(2)(b) without sufficient legal authority. This Tribunal finds that CCRB has met its burden of showing by a preponderance of the credible evidence that Respondent Sinclair did not have reasonable suspicion that either of these individuals were armed or otherwise engaged in criminal activity.

Respondent Sinclair's BWC captures him questioning and frisking § 87(2)(b) and § 87(2)(b) after asking them to exit the car. Respondent Sinclair asked § 87(2)(b) if he had "anything on [him]." § 87(2)(b) shook his head. Respondent Sinclair then asked, "Cool if I check?" § 87(2)(b) lifted his arms and Respondent Sinclair patted down his pockets. After asking § 87(2)(b) to step out of the car, Respondent Sinclair asked, "You have nothing on you, right?" § 87(2)(b) replied, "No, sir," and raised his arms. Respondent Sinclair repeated, "Mind if I check?" and squeezed § 87(2)(b) pants and jacket pockets. (CCRB Ex. 3 at 5:40-6:22)

As mentioned in the previous section, Respondent Sinclair also did not articulate suspicion of criminality for any of the involved individuals. The only evidence of unlawful activity that Respondent Sinclair testified to was: an air freshener hanging from the rearview mirror (a VTL violation) and the odor of marijuana smoke emanating from the vehicle as he was talking to the occupants, which according to him, was "no big deal." (See CCRB Ex. 3 at 01:33-01:36) This Tribunal therefore finds Respondent Sinclair guilty of the misconduct charged in Specifications 1 through 4.

d. Specifications 4 & 5: Seizure and Search of Vehicle by Respondent McCrain

Specifications 5 & 6: Seizure and Search of Vehicle by Respondent Sinclair

Respondents McCrain and Sinclair are charged with seizing and searching § 87(2)(b) car in violation of the law. After Respondents made the decision to arrest § 87(2)(b) for driving with a suspended license, his vehicle was taken to the precinct for what was described by Respondents as an “inventory search.” Respondent McCrain testified that he could not “release the car on scene” so he brought it back to the precinct. (Tr. 232)

Patrol Guide 209-26 delineates the procedures to be undertaken when a uniformed member of the service stops a vehicle and discovers that the operator is driving with a suspended/revoked driver’s license. Paragraph 5 specifically directs the MOS to “have violator’s vehicle parked in legal parking area until registered owner can arrange to have vehicle removed from scene by licensed operator.” There is no requirement, pursuant to this provision, that a car be seized or searched simply because the operator is driving with a suspended license. Similarly, Patrol Guide 208-03, governing the general processing of arrests, instructs the desk officer to “[h]ave vehicle or other conveyance not required as evidence safeguarded, if appropriate.” Again, this guidance does not require that the vehicle be brought to the precinct or searched.

CCRB’s Exhibit 2 shows that after § 87(2)(b) was placed under arrest, § 87(2)(b) asked Respondents Sinclair and McCrain, “If one of us got a valid license, we can take the car, right?” Respondent McCrain replied, “Unfortunately not. It’s gotta come back with us.” Respondent Sinclair added, “It’s part of his possessions.” (CCRB Ex. 2 at 14:48-15:00). Before placing § 87(2)(b) in a police car, Respondent McCrain told § 87(2)(b) § 87(2)(b) and the unidentified individual, “You guys are good to go. Unfortunately, you gotta walk.” § 87(2)(b) asked, “We can’t get nothing out of the car?” Respondent McCrain replied, “No.” (*Id.* at 16:09-

16:22) Furthermore, according to the testimony adduced at trial, two of § 87(2)(b) friends had driver's licenses and could have driven the car from the scene, but Respondent McCrain maintained that he could not release the car on scene after § 87(2)(b) was arrested for driving with a suspended license. (Tr. 15, 84)

Respondent McCrain's statement that he could not release § 87(2)(b) car on scene is not supported by the Patrol Guide. In fact, it is contrary to the directive given to officers in P.G. 209-26. The only other legitimate purpose of seizing the car, therefore, would be to safeguard the vehicle. Here, however, where two of § 87(2)(b) friends had driver's licenses and could have taken the car from the scene, seizing the vehicle would be unnecessary.

Since the seizure of § 87(2)(b) vehicle was not justified, it follows that the subsequent "inventory search" conducted by Respondents McCrain and Sinclair at the stationhouse also exceeded their lawful authority.

This Tribunal therefore finds Respondent McCrain guilty of Specifications 4 and 5 and Respondent Sinclair of Specifications 5 and 6.

2. December 21, 2022 Encounter Involving Respondent Lombardi

Respondent Lombardi is charged with abusing his authority as a member of the New York City Police Department, in that he frisked and searched a bag belonging to § 87(2)(b) without sufficient legal authority. Additionally, Respondent Lombardi is charged with questioning, frisking and searching § 87(2)(b) without legal justification and failing to provide him with a business card at the conclusion of their interaction. The following facts are undisputed.

Following his release from the precinct, § 87(2)(b) contacted § 87(2)(b) to pick him up. She arrived at the precinct to drive § 87(2)(b) to his home in his car. They

drove to § 87(2)(b) house to return property that he had left in the BMW earlier that evening.
(Tr. 163-64)

A different set of officers from the 113 Precinct stopped § 87(2)(b) car while § 87(2)(b) was driving. At the time of this second stop, § 87(2)(b) was seated in the back seat. The officers asked § 87(2)(b) for her license. § 87(2)(b) informed the officers that he had just been released from the 113 Precinct. The officers informed the occupants that the air freshener, which was still hanging from the rearview mirror, was the reason for the vehicle stop. § 87(2)(b) heard one of the officers say “bag” and another officer proceeded to instruct § 87(2)(b) to exit the vehicle. § 87(2)(b) recalled seeing an officer search § 87(2)(b) bag and “once they realized he [didn’t] have anything, they [told] him to get back in the vehicle.” (Tr. 165-67)

§ 87(2)(b) posited that the stop ended after he showed the officers the paperwork to support his assertion that he had just been ticketed and released from the precinct. He stated that he felt “harassed” during these police encounters because he had not done anything to draw attention to himself and yet he was stopped by law enforcement on two separate occasions within the span of six hours. § 87(2)(b) testified that he does not get pulled over “that often” and thus, the entire ordeal was “ridiculous” in his eyes. (Tr. 167-68, 203)

Respondent Lombardi testified that, at approximately 3:00 am on December 21, he and his partners were called to a car stop, which other officers had already initiated. As he approached the car that was stopped, Respondent Lombardi observed, “a slight shift in the shoulder. Like very slight movement from the rear back passenger.” (Tr. 264) Respondent Lombardi also heard an officer, who was already standing on the other side of the car, state the word “bag” to him. Respondent Lombardi understood this to mean that he saw something with a bag in the car. Respondent Lombardi further elaborated:

Typically, when we are -- as a team, when we are communicating, we typically use one word phrases just to quickly talk and not to -- not to make the person aware of what we are doing. So when he said bag to me, in our previous car stops, that means to me he saw something with a bag, he wants me to check it out. (Tr. 266)

Respondent Lombardi proceeded to ask § 87(2)(b) to step out of the car. He complied as he held the bag from his wrist. Respondent Lombardi questioned him about the contents of the bag, and was informed that it contained "a charger and some weed." Respondent Lombardi, however, recalled observing something heavy inside the bag, with a rectangular shape, which he believed to be a firearm. This belief caused him to immediately frisk and search the bag without first asking § 87(2)(b) consent to do so. After searching the bag, Respondent Lombardi confirmed the object was a portable charger. (Tr. 267, 279-81; CCRB Ex. 1 at 3:52-4:05)

Respondent Lombardi then told § 87(2)(b) "come with us" and they walked a few feet to the back of the RMP. He recounted that § 87(2)(b) asked to put his hands in his pocket because it was cold; Respondent Lombardi testified he had "no problem with that" but asked § 87(2)(b) if he could "check him." According to Respondent Lombardi, in response to that question, § 87(2)(b) made a motion with hands out, which led him to believe that § 87(2)(b) was consenting to the frisk. (Tr. 267) Respondent Lombardi also testified that the front of § 87(2)(b) jacket was "protruding out," indicating to him that there might be "an object" in his pocket. He proceeded to frisk § 87(2)(b) jacket and put his hands in both of its pockets. Respondent Lombardi did not recover anything from the search and allowed § 87(2)(b) to put his hands in his pockets. (Tr. 282-84; see CCRB Ex. 1 at 4:10-4:23)

On cross-examination, Respondent Lombardi admitted that when he first arrived at the scene, he did not know the basis for the stop. Respondent Lombardi also acknowledged that he did not suspect § 87(2)(b) of committing any crimes or other violations, other than not wearing a seatbelt. Nonetheless, Respondent Lombardi requested § 87(2)(b) identification and when he

was unable to produce one, he provided Respondent Lombardi with his pedigree information so that Respondent Lombardi could “run a search for him.” (Tr. 271, 273-74)

Respondent Lombardi confirmed that he did not prepare a memo book entry or any other written documentation about the frisk of § 87(2)(b) or the search of his bag. Moreover, Respondent Lombardi admitted that he did not provide § 87(2)(b) with a business card at the conclusion of the encounter because he forgot. (Tr. 262, 268, 284-85)

a. Specifications 1 & 2: Frisking and Searching of Bag

Respondent Lombardi is charged with frisking and searching § 87(2)(b) bag without sufficient legal authority. Patrol Guide 212-11 states:

An officer may not frisk a person’s bag or other item of personal property unless the officer has reasonable suspicion to believe that the person is armed and dangerous and that the bag or item of personal property could contain a weapon and is within the person’s reach. If the bag/item is soft, the officer should run her/his hands down the outside of the bag/item and open it only if she/he feels the contours of what she/he believes is a weapon.

The fact that a fellow officer, who was in closer proximity to the bag in question, alerted Respondent Lombardi to it, coupled with his independent observation of the outline of a heavy, rectangular object in the bag, provided sufficient reasonable suspicion for him to frisk § 87(2)(b) bag for the purpose of ensuring the officers’ safety. Accordingly, this Tribunal finds Respondent Lombardi not guilty of Specification 1.

Respondent Lombardi’s testified that “frisking” the bag did not dispel his belief that the object was a firearm. He claimed that based on the shape and weight of the item, he believed it to be a firearm despite the fact that it was not “L-shaped.” He did not, however, articulate any other description or reasonable basis to support this belief. Respondent Lombardi proceeded to look inside the bag and ascertained that it contained a portable charger, as § 87(2)(b) had indicated. (Tr. 280-81)

Patrol Guide 212-11 defines “search after frisk,” as “a search that occurs when the officer places her/his hands inside a pocket or other interior portions of a person’s clothing or personal property to remove an object that the member felt during a frisk and reasonably suspects is a weapon or dangerous instrument.” After viewing the BWC footage, it appears that the bag that § 87(2)(b) was carrying was made of a soft, cloth-like, pliable material. Therefore, Respondent Lombardi should have been able to determine the contents of the bag by running his hands down the outside of the bag. Moreover, it was also apparent from the BWC footage that Respondent Lombardi frisked and searched § 87(2)(b) bag almost simultaneously. This signifies to the Tribunal that Respondent Lombardi acted hastily in searching inside the bag without first confirming his suspicion through the frisk of the outside of the bag as required by the Patrol Guide. Accordingly, this Tribunal finds Respondent Lombardi guilty of the misconduct set forth in Specification 2.

b. Specifications 3, 4, & 5: Questioning, Frisking & Searching of § 87(2)(b)

After searching § 87(2)(b) bag, Respondent Lombardi asked him to stand at the back of the vehicle. As he stood outdoors, § 87(2)(b) requested permission to put his hands in his pockets because it was cold. (CCRB Ex. 1 at 4:04-4:14) Respondent Lombardi asked if § 87(2)(b) “minded” if he checked his pockets first. He interpreted § 87(2)(b) outstretched hands as consent. Respondent Lombardi did not tell § 87(2)(b) that he was not required to give his consent.

After confirming that § 87(2)(b) did not have a weapon in his bag, Respondent Lombardi’s interaction with § 87(2)(b) should have ceased. According to Respondent Lombardi’s own testimony, he did not suspect § 87(2)(b) of anything more than a possible seatbelt violation. Moreover, Respondent Lombardi’s BWC does not show that § 87(2)(b) made any motions that could be interpreted as “furtive,” and there was no discernable bulge on § 87(2)(b) jacket. It is

also worth noting that Respondent Lombardi cannot be heard asking § 87(2)(b) for consent to search on his BWC footage. Instead, Respondent Lombardi asks, “you got nothing in your pockets, right? No knives or anything like that?” as he simultaneously frisks and searches § 87(2)(b) jacket. (CCRB Ex. 1 at 4:14-4:20)

Without additional information or any further articulable observations, Respondent Lombardi’s blanket assertion that § 87(2)(b) could possess a weapon on his person was insufficient to justify a further intrusion. Thus, Respondent Lombardi’s questioning, frisk, and search of § 87(2)(b) were legally unjustifiable. Accordingly, this Tribunal finds Respondent Lombardi guilty of the misconduct set forth in Specifications 3, 4 and 5.

c. Specification 6: Failing to Provide Business Card

Administrative Guide 304-11 prescribes that, in accordance with the New York City Right to Know Act, a business card is to be offered to members of the public upon conclusion of certain law enforcement activities except in cases where a summons is issued or an arrest is made. A.G. 304-11 goes on to define these law enforcement activities as:

- a) Noncustodial questioning of individuals suspected of criminal activity (Level 2 Encounter)
- b) Stop where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter (Level 3 Encounter)
- c) Frisk (Level 3 Encounter)
- d) Search of persons or property, including vehicles.

It is undisputed that Respondent Lombardi was required to offer a business card to § 87(2)(b) but did not. Accordingly, I find Respondent Lombardi guilty of the misconduct set forth in Specification 6.

3. Taking Law Enforcement Action Based Upon Actual or Perceived Race

All three Respondents are charged with abusing their authority as a member of the Department by taking law enforcement action based upon actual or perceived race. Administrative Guide 304-17: Department Policy Prohibiting Racial Profiling and Bias-Based Policing prohibits a “decision to initiate enforcement action against a person [that] is motivated even in part by a person’s actual or perceived race, color, ethnicity or national origin, . . . unless the officer’s decision is based on a specific and reliable suspect description that includes not just race, age, and gender, but other identifying characteristics or information.” This prohibition on racially motivated police-initiated enforcement action applies not only to vehicle stops, but to any police-initiated enforcement action, “including, but not limited to arrests, Level 3 Terry stops, frisks, searches, [and] summonses.” *Id.*

It is well-established law that race does not have to be the “sole, primary, or predominant motivation” to prove that a law enforcement action constitutes racially biased policing. *See Arlington Heights v. Metro. Housing Dev. Corp.*, 429 U.S. 252, 265 (1977); *U.S. v. Yonkers*, 96 F.3d 600, 611-12 (2d Cir. 1996); *Floyd v. City of New York*, 959 F.Supp.2d 540, 571 (S.D.N.Y. 2013) (applying the Arlington Heights/Yonkers motivating factor standard to allegations of discriminatory policing). Moreover, a law enforcement official’s actions “need not be motivated by ill will, enmity, or hostility” to be biased. The determinative factor is whether the officer intentionally treats a civilian differently because of one or more of their protected demographic traits (e.g., race, religion, etc.). *See Floyd*, 959 F.Supp.2d at 662, quoting *Ferrill v. Parker Grp.*, 168 F.3d 468, 473 (11th Cir. 1999); *Hassan v. City of N.Y.*, 804 F.3d 277, 297-98 (3d Cir. 2015).

At the outset, the Tribunal must underscore that there is no direct evidence of biased-based policing or racial profiling in this case. Nevertheless, racially discriminatory intent may be

established through circumstantial evidence. The United States Supreme Court has explained that allegations of discrimination “demand a sensitive inquiry into such circumstantial and direct evidence of intent as may be available.” *Arlington Heights*, 429 U.S. at 266. Such “circumstantial evidence of invidious intent may include proof of disproportionate impact,” and whether the impact of the challenged official action “bears more heavily on one race than another.” *Washington v. Davis*, 426 U.S. 229, 242 (1976); see *Batson v. Kentucky*, 476 U.S. 79, 93 (1984).

In cases where there is no direct evidence of bias, the fact-finder must look to the “totality of the relevant facts.” See *LeBlanc-Sternberg v. Fletcher*, 67 F.3d 412, 425 (2d Cir. 1995). Examples of circumstantial evidence to consider include, but are not limited to: (i) the sequence of events leading up to the law enforcement activities at issue; (ii) the officers’ violation of law and/or departmental policies and procedures during the incident in question; (iii) the falsity of the officers’ non-discriminatory explanations for their actions; (iv) the officers’ departure from their own and/or their fellow officers’ customary practices during the incident in question; and (v) data showing a pattern of racial disparities in the officers’ enforcement activity over time.

The Tribunal considered all circumstantial evidence set forth in the record to determine whether CCRB had proven that Respondents’ law enforcement actions were racially biased. After careful analysis, this Tribunal finds that there is insufficient evidence to conclude that Respondents took law enforcement action based upon Complainant’s actual or perceived race. Therefore, Respondent McCrain is found to be not guilty of Specification 6; Respondent Sinclair is found to be not guilty of Specification 7; and Respondent Lombardi is found to be not guilty of Specification 7.

a. Respondents McCrain and Sinclair

As set forth in detail above, this Tribunal has already found that during this encounter Respondents McCrain and Sinclair committed various administrative infractions. Specifically, the Tribunal found that Respondents exceeded their authority in questioning and frisking the other occupants of § 87(2)(b) car because they did not have the requisite level of suspicion to reasonably believe that they were involved in criminal activity. It is also notable that Respondents stopped § 87(2)(b) vehicle for a minor VTL infraction when their enforcement focus, as NST officers, was on more serious offenses.

The proven misconduct in this case can be probative circumstantial evidence used to establish bias-based policing or racial profiling. To prove such a claim, however, the circumstantial evidence must be such as to support the conclusion that the inference drawn “is the only one that is fair and reasonable.” Disciplinary Case No. 2015-13328 (June 8, 2017), quoting *Health & Hosps. Corp. (Woodhull Med. & Mental Health Ctr.) v. Amoros*, OATH Index Nos. 469-70/02, p. 23 (Nov. 6, 2002), citing *Department of Transp. v. Mascia*, OATH Index No. 403/85, p. 12 (May 30, 1986). Here, there are other significant probative factors which weigh against drawing an inference that Respondents took police action based upon actual or perceived race.

For example, evidence that an officer knew an individual’s race before stopping a vehicle can support an inference that the individual’s race may have played a role in the officer’s decision to take such action. See *Ballew v. Pasadena*, 642 F.Supp.3d 1146, 1164-65 (C.D. Cal., Nov. 23, 2022); *Commonwealth v. Long*, 152 N.E.3d 733, 739-40 (Mass. 2020); *Marshall v. Columbia Lea Reg’l Hosp.*, 345 F.3d 1157, 1169 (10th Cir. 2003). The evidence in this case, however, is insufficient to support the conclusion that Respondents McCrain and Sinclair knew

the race of the individuals in the car prior to the December 20th stop. According to their testimony, Respondents could not determine the race of the vehicle occupants before the stop; they could only make out the presence of an air freshener hanging from the rearview mirror and the silhouettes of the occupants. At trial, there were several facts supporting Respondents' version of events. Specifically, it was approximately 2100 hours and dark outside, the vehicle windows were tinted and Respondents were driving behind § 87(2)(b) car when they initiated the stop.² Additionally, CCRB's Exhibit 2 shows that as Respondents approached the vehicle, and although the streetlights were on, their flashlights were on, presumably to illuminate their path and enhance their ability to see. Accordingly, I find that the evidence is insufficient to support the conclusion that Respondents knew the race of the occupants before stopping the vehicle.

CCRB also offered statistical evidence in support of its argument that Respondents McCrain and Sinclair engaged in bias-based policing. Courts have widely recognized that data showing a pattern of racial disparities in a police officer's enforcement actions is probative circumstantial evidence in a racial profiling case against that officer. *See, e.g., U.S. v. Avery*, 137 F.3d 343, 355 (6th Cir. 1997); *Marshall*, 345 F.3d at 1168; *Anderson v. Cornejo*, 284 F.Supp.2d 1008, 1050 (N.D. Ill. 2003); *United States v. Hare*, 308 F.Supp.2d 955, 992 (D. Neb. 2004); *Johnson v. Holmes*, 782 Fed. Appx. 269, 281-82 (4th Cir. 2019); *Long*, 152 N.E.3d at 739-40; *Ballew*, 642 F.Supp.3d at 1165-67. Here, CCRB offered data on the race of drivers stopped by Respondents over a one-year period, and the testimony of Dr. Alix Winter, Chief Data Scientist

² § 87(2)(b) testified that his car windows were tinted "thirty-five percent" which he believed to be "legal" tints. (Tr. 155-56) However, Respondents did not stop the car for this reason and no test was administered to assess the degree of tint and whether it was within the legal limit.

for the Racial Profiling and Bias-Based Policing Unit, to aid in the Tribunal's understanding of this data.³

Dr. Winter testified that in her capacity as a Chief Data Scientist at CCRB, she meets with the unit's investigators and attorneys to discuss complaints in which they have identified law enforcement actions that are potentially racially biased. She then requests the pertinent datasets from the NYPD and analyzes them to assess whether a subject officer's relevant enforcement activity demonstrates a pattern of racial disparities.⁴ To date, Dr. Winter has analyzed fifty cases alleging racial bias. In more than 50% of the cases she analyzed, the data indicated that an officer did not have a pattern of racially disproportionate enforcement activity. (Tr. 38-40)

Dr. Winter analyzed the vehicle stop report data provided by the NYPD for Respondents from January 1, 2022 until the date of this incident. Dr. Winter then compared the racial composition of Respondents' vehicle stops to United States Census data reflecting the racial

³ This tribunal certified Dr. Winter as an expert. Dr. Winter testified about her educational background and professional experience in the field of quantitative social science research. She indicated that her expertise is in racial and socioeconomic inequality in the United States. Dr. Winter has published academic papers that use quantitative social science methods to examine racial and socioeconomic inequality, particularly in relation to health and in relation to the criminal legal system. In addition to her publications, Dr. Winter presented her work in a variety of settings including universities and at the Centers for Disease Control and Prevention. Moreover, she has taught classes on quantitative methods on both the introductory and advanced graduate level. (Tr. 33-36) The decision to permit expert testimony on a given subject or by a particular witness is a question for the court. "Generally speaking, a predicate for the admission of expert testimony is that its subject matter involve information or questions beyond the ordinary knowledge and experience of the trier of the facts. The expert should possess the requisite skill, training, education, knowledge or experience from which it can be assumed that the information imparted or the opinion rendered is reliable." *See Matott v. Ward*, 48 N.Y.2d 455, 459 (1979), *People v. Ingram*, 2 A.D.3d 211 (1st Dept. 2003) Although Dr. Winter had not been previously qualified as an expert, she testified that she was confident in her ability to provide accurate and reliable opinions on the data provided by the Department based upon her education and experience. Respondents' attorney was given the opportunity to *voir dire* Dr. Winter and objected to her being qualified an expert. Over counsel's objection, this Tribunal qualified Dr. Winter as an expert in the field of data analysis.

⁴ In June 2023, CCRB and NYPD reached a Data Sharing Agreement which provides that the NYPD will share historical data – including anonymized enforcement data, specifically for the type of enforcement at issue, for the subject officer(s) and other officers from the subject officer's command during the 12-month period before an incident – with the CCRB for investigations that include allegation(s) of bias-based policing or racial profiling and have reached the stage of investigation in which the subject officer(s) have been identified.

composition of the residential population of the 113 Precinct and a one-mile radius around it (hereinafter "113 Precinct"). Because the occupants of the vehicle stopped by Respondents in this case were Black, she compared their vehicle stops involving Black drivers to the residential population that self-identified as Black. The data used by Dr. Winter is collected every ten years by the United States Census Bureau and is gathered annually by the American Community Survey. The Census data indicated that the residential population of the 113 Precinct is 77% Black. (Tr. 54-55)

Dr. Winter's methodology analyzed the vehicle report data and compared each Respondent's vehicle stops involving Black drivers to the residential population of the 113 Precinct, the vehicle stops involving Black drivers made by the other members of service in the 113 Precinct, and similarly situated vehicle stops⁵ made by members of service in the 113 Precinct. Dr. Winter also analyzed the outcomes of Respondents' vehicle stops by race, including summonses issued, arrests made, and vehicles searched and seized, and compared these outcomes to the stops of similarly situated vehicle stops conducted in the targeted area. Dr. Winter also excluded vehicle stops addressing tinted windows to eliminate instances where officers were less likely to have ascertained the race of the driver before making the stop. (Tr. 37-38, 58-59, 93, 97, 135-36)

Dr. Winter elaborated on the results of her data analysis, including which differences between Respondents' vehicle stops and the vehicle stops by the rest of the command she believed were "statistically significant." Dr. Winter's analysis of this data revealed that

⁵ Dr. Winter defined "similarly situated vehicle stops" as those that were conducted by officers assigned to the same command as the subject officers and occurred within the same time of day (using 2-hour time blocks), day of the week, month, and police sector combinations that match such combinations among the subject officers' vehicle stops. (Tr. 57)

Respondents McCrain and Sinclair stopped a higher percentage of Black drivers as compared to three categories: 1) the residential population, 2) the drivers stopped by the other members of service in their command, and 3) the drivers stopped in similarly situated vehicle stops. Whereas 77% of the residential population of the 113 Precinct is Black, 96% and 88% of drivers stopped by Respondent McCrain and Respondent Sinclair, respectively, were Black. According to Dr. Winter, Respondent Sinclair's and Respondent McCrain's stops of Black drivers are especially significant given that only 68% of vehicle stops made by the rest of the members of service in their command involved Black drivers. Most notably, while 96% of the drivers stopped by Respondent McCrain were Black, only 79% of drivers in similarly situated stops made by other officers from the 113 Precinct involved Black drivers. While 88% of drivers stopped by PO Sinclair were Black, 74% of similarly situated stops made by other 113 Precinct officers involved Black drivers. Dr. Winter assessed these disparities to be statistically significant based on prevailing social science research standards. (Tr. 55-56, 60-65)

The data presented to this tribunal does document comparative racial disparities between the drivers stopped by Respondents and those stopped by other officers in their precinct. While at first blush these disparities raise serious questions, the legal inquiry cannot stop there. The primary issue before this tribunal is whether the data provided by CCRB has proven that the cause of the noted disparities is racial bias. As previously mentioned, Dr. Winter used Census data to develop an "external benchmark" against which to measure Respondents' vehicle stop data. While there are an array of accepted benchmarking methods that have been used across the country, some are more focused in their ability to draw a causal inference about the extent to

which race was a relevant factor in police decision-making.⁶ This tribunal is cognizant that developing appropriate benchmarks is a complicated task and that there is no single accepted standard that can be applied to data to definitively ascertain whether police are acting with racial bias. However, after assessing Dr. Winter's data analysis and testimony, this tribunal is not persuaded that there is sufficient evidence to draw a causal inference about the effect of race on Respondent McCrain and Sinclair's law enforcement actions on the night in question.

Although Respondents chose not to call an expert or present any statistical evidence on behalf of the defense, this Tribunal did find a significant gap in Dr. Winter's statistical analysis. Dr. Winter used Census data to determine the racial composition of those residing within the 113 Precinct. This Census data is valuable because it is easily accessible and can be broken down by small geographic units within a jurisdiction. However, the major drawback of this data is that it does not necessarily represent the racial background of drivers who are at risk of law enforcement interventions on the roads. In short, the demographic profile of residents produced by Census data is not likely to be an accurate reflection of drivers who may be on the roads and stopped by police.

Some studies, including those relied upon by CCRB, have suggested adjusting the Census data by incorporating different variables to ensure a more refined analysis. These studies recommend various adjustments including distilling the data by removing minor children and including only the population of driving age, or adjusting the Census data for those who own a vehicle using the National Personal Transportation Survey.⁷ Other studies also recommend using

⁶ See Greg Ridgeway and John MacDonald, *Methods for Assessing Racially Biased Policing* (RAND Corp. 2011), available at <https://www.rand.org/pubs/reprints/RP1427.html>

⁷ Lorie A. Fridell, *By the Numbers: A Guide for Analyzing Race Data from Vehicle Stops*, Police Executive Research Forum (2004)

the race distribution of licensed drivers rather than residential population to estimate the race distribution of drivers at risk of being stopped by the police.⁸ Census benchmarking with adjustments is a stronger method than using unadjusted Census data for assessing the nature and extent of the racial disparities presented by Dr. Winter.⁹

I find that the overly broad Census data used by Dr. Winter is not a sufficiently reliable benchmark for the demographics of motorists on the roads patrolled by Respondents. Imprecise approximations of the population at risk for police contact can lead to exaggerated estimates of racial bias. Additionally, and perhaps most important for this tribunal's assessment, is that the approach used did not provide an evidentiary basis for finding a causal inference about the effect of race on police behavior.

In addition to the external benchmarking described above, Dr. Winter also compared Respondents' vehicle stops to "similarly situated" vehicle stops made by officers in the 113 Precinct. This method has been referred to by some studies as "internal benchmarking." As noted in relevant studies, "the strength of this method is directly linked to the quality of the match between the officers or group of officers being compared. That is, the researcher wants to maximize the similarity among the officers being compared or among the groups being

⁸ Zingraff, M. T., Mason, M., Smith, W., Tomaskovic-Devey, D., Warrent, P., McMurray, H. L., and Fenlon, R. C., *Evaluating North Carolina State Highway Patrol Data: Citation, Warnings, and Searches in 1998*, report submitted to North Carolina Department of Crime Control and Public Safety and North Carolina State Highway Patrol (2000).

⁹ In their post-trial memorandum of law, CCRB relied on the finding in *Commonwealth v. Long*, 152 N.E.3d 725 (2020), where the Massachusetts Supreme Judicial Court held that a trial judge erred in discounting statistical expert analysis comparing individual officers' vehicle stop data to the population of drivers in the areas patrolled by those officers, as measured by the Census data. However, the court in *Long* also found that "the defendant's expert statistician took pains to account in sophisticated ways for the possible presence of nonresident drivers." *Id.* at 746. This targeted benchmarking data was found to be sufficiently reliable to support a claim of selective enforcement and racial discrimination in making traffic stops.

compared.”¹⁰ The goal is to compare officers on the same tour of duty, in the same geographic area and *with the same assignment* because they would presumably be exposed to a similar population of drivers.

Dr. Winter defined “similarly situated” stops as those that were conducted by officers assigned to the same command as the subject officers and occurred within the same time of day (using 2-hour time blocks), day of the week, month, and police sector combinations that match such combinations among the subject officers’ vehicle stops. Dr. Winter testified that the comparison group consisted of 186 uniformed members of service assigned to the 113 Precinct who completed vehicle reports during the relevant period in question. When using this comparison group, however, Dr. Winter did not dichotomize the rank or assignments of those 186 officers. She further acknowledged that such “assignment data” would have rendered the “similarly situated” comparison to be “more narrowly focused.” (Tr. 109, 127-28)

In other words, the report on similarly situated stop reports provided by CCRB included vehicle stops made by officers with different assignments than Respondents. In order for the results of this methodology to be sufficiently reliable, the officers in the similarly situated group should have been matched by assignment. It is reasonable to expect officers with different duties and responsibilities to have different priorities. For instance, officers assigned to enforce traffic laws are likely to stop more drivers than NST officers or general patrol. Thus, combining vehicle stops by officers with different assignments is likely to yield distorted data.¹¹

¹⁰ Fridell, *supra* note 8 at 143.

¹¹ Some research suggests that officers with a particularly low number of documented stops, even if they otherwise fit into a selected comparison group, should be excluded because analyses based on small numbers are unreliable. Additionally, Dr. Winter testified that less than 20 reports for an officer would be insufficient to make a “meaningful” comparison. It should be noted that Respondent McCrain only made 24 documented vehicle stops during the relevant time period. Some studies suggest that the internal benchmark approach should not include

While benchmarking enables analysts to identify “outliers”-- officers who stop racial minorities at higher rates than their counterparts -- the degree of confidence in identifying bias-based policing is dependent upon the strength of the match. In sum, definitive conclusions about bias-based policing cannot be drawn from the benchmarking method used here because the racial/ethnic profile of the drivers to which an officer or group of officers is exposed is not similar to the racial/ethnic profile of the drivers to which the matched officers or matched group of officers are exposed. Although the benchmarking method used in this case highlighted certain racial disparities, it was not sufficiently probative to base a finding that the identified disparity was caused by racial bias.

CCRB has the burden of proving by a preponderance of the credible evidence that Respondents took law enforcement action based on the actual or perceived race of the occupants of the vehicle. Based upon the record in this case, I find that CCRB fell short of that burden. Accordingly, Respondent McCrain is found not guilty of Specification 6 and Respondent Sinclair is found not guilty of Specification 7.

b. Respondent Lombardi

Dr. Winter testified that she analyzed Respondent Lombardi’s vehicle stops using the methodology described above. However, Respondent Lombardi arrived on scene after the stop of the vehicle was conducted by other officers and played no role in the decision to stop the vehicle. In this Tribunal’s opinion, Dr. Winter’s statistical analysis of Respondent Lombardi’s vehicle stops is not probative to the limited issues concerning the law enforcement actions he took on the date in question. Accordingly, I find Respondent Lombardi not guilty of Specification 7.

officers with less than 50 stops because “then chance differences from their benchmark are likely and the comparisons are underpowered.” (See Rand, *supra* note 8 at 18)

PENALTY

In order to determine appropriate penalties, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Discipline Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondents' employment histories also were examined. *See* 38 RCNY § 15-07. Information from their personnel records that was considered in making these penalty recommendations is contained in attached memoranda.

Respondent Lombardi

Respondent Lombardi was appointed on July 1, 2019. He has had no formal disciplinary history in his almost six years with the Department and has been recognized with several medals during that time period. Respondent Lombardi has been found guilty of questioning, frisking and searching § 87(2)(b) without sufficient legal authority. He has also been found guilty of failing to provide a business card at the end of his interaction with § 87(2)(b).

The record establishes that Respondent Lombardi arrived on scene to aid fellow officers engaged in a vehicle stop and that his interaction with the backseat passenger, § 87(2)(b) was limited. Respondent Lombardi's initial frisk of § 87(2)(b) bag was appropriate under the circumstances; however, his subsequent search of the bag and then further questioning, frisk and search of § 87(2)(b) himself was unjustified. Moreover, Respondent Lombardi's failure to provide a business card is a Patrol Guide violation that warrants a separate penalty.

The presumptive penalty for improper question, frisk and search, is three penalty days, respectively. This Tribunal finds that, under the circumstances presented here, concurrent penalties for these specific infractions are appropriate. Therefore, I recommend a forfeiture of three vacation days. The presumptive penalty for failure to provide a business card, which is also

three days, is warranted. Given the separate and distinct nature of Respondent's violations, the penalties shall run consecutively. Accordingly, I recommend that Respondent Lombardi forfeit a total of six vacation days.

Respondents McCrain and Sinclair

Respondent McCrain, who was appointed to the Department on October 24, 2018, and Respondent Sinclair, who was appointed on July 2, 2018, have no prior formal disciplinary adjudications. Respondent Sinclair has been found guilty of questioning and frisking two different occupants of § 87(2)(b) vehicle without sufficient legal authority. Respondent McCrain has been found guilty of improperly questioning § 87(2)(b) as well as questioning and frisking an unidentified occupant. In addition, both Respondents have been found guilty of an improper search and seizure of § 87(2)(b) vehicle.

As discussed above, § 87(2)(b) was detained and ultimately arrested for driving with a suspended license after being stopped for a VTL infraction. This Tribunal found, however, that Respondent McCrain's questions regarding the contents of § 87(2)(b) vehicle surpassed the reasonable bounds of this investigation. Additionally, because the other occupants in his car were not suspected of committing a crime, Respondents lacked the requisite founded suspicion that criminal activity was afoot to question these individuals. Respondents also exceeded their authority in frisking them even if they believed they had "consent" to do so. This tribunal further notes that a number of unexplained procedural irregularities flowed from this stop which must be addressed.

With respect to the question and frisk specifications, the presumptive penalty for unauthorized questioning is three penalty days. Likewise, the presumptive penalty for an unauthorized frisk is three penalty days. Given the specific facts of this case, it is appropriate that

the penalties for these two infractions run concurrently. Inasmuch as each Respondent questioned and frisked separate individuals without sufficient legal authority, I recommend a penalty of three vacation days for each person impacted by this violation. Accordingly, Respondent McCrain and Respondent Sinclair will each forfeit a total of six vacation days for the misconduct set forth in these specifications.

Respondents McCrain and Sinclair also engaged in misconduct by seizing and searching § 87(2)(b) car. The presumptive penalty for the seizure of property (which this Tribunal interprets as including a vehicle) is three days; the presumptive penalty for the search of a vehicle is an additional three days. Given Respondents' failure to properly document these actions and provide an inventory of the vehicle's contents, I am recommending that these penalties run consecutively. Consequently, for the seizure and search of the vehicle, each Respondent will forfeit six vacation days.

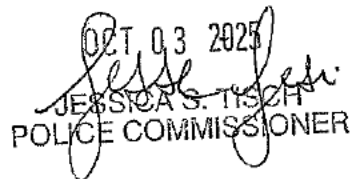
In sum, this Tribunal recommends that Respondent McCrain forfeit a total of twelve vacation days and that Respondent Sinclair also forfeit a total of twelve vacation days.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

02T 03 2025

JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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MOHAMMAD KHALID
INTERIM CHAIR

May 16, 2025

VIA ELECTRONIC MAIL

Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Police Officer Anthony Lombardi, Tax Registry No. 967967
Police Officer Ryan McCrain, Tax Registry No. 966701
Police Officer Thomas Sinclair, Tax Registry No. 966341
Disciplinary Case Nos. 30538/24, 30539/24, 30540/24

Commissioner Tisch:

The above-referenced cases were tried on December 18 and 19, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter “NYPD”). The CCRB has reviewed the April 29, 2025 draft decision of Assistant Deputy Commissioner – Trials, Vanessa Facio-Lince. We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

STATEMENT OF FACTS

On December 20, 2022, at the intersection of Lakeview Lane and 122nd Avenue in Queens, at approximately 9:18 p.m., Police Officers Ryan McCrain and Thomas Sinclair pulled over § 87(2)(b) a 25-year-old Black man, to address an air freshener hanging from § 87(2)(b) rearview mirror. § 87(2)(b) and an unknown individual – all Black men – were passengers in the vehicle. PO McCrain and PO Sinclair ordered § 87(2)(b) and his three passengers out of the car. PO McCrain asked the unidentified individual if he had any weapons on him, asked for consent to frisk, and frisked him. PO Sinclair also frisked § 87(2)(b) and § 87(2)(b) after asking for consent. PO McCrain asked § 87(2)(b) if there was anything illegal in the car and for consent to search the vehicle. § 87(2)(b) refused to give consent. PO McCrain and PO Sinclair arrested § 87(2)(b) for driving with a suspended license. PO McCrain and PO Sinclair impounded § 87(2)(b) vehicle, despite the presence of two passengers with valid driver’s licenses, one of whom asked if they could take the car, and the absence of evidence that the car was unregistered or contained evidence of a crime. At the 113th Precinct stationhouse, PO McCrain and PO Sinclair conducted what they characterized as an inventory search of § 87(2)(b) vehicle without following an established inventory search procedure. PO McCrain and PO Sinclair failed to prepare a Vehicle Report, Stop Report, or a Consent Search Report for this incident.

On December 21, 2022, at approximately 3:00 a.m., § 87(2)(b) was released from police custody. § 87(2)(b) picked up § 87(2)(b) and his vehicle at the 113th Precinct stationhouse and drove to the intersection of Foch Boulevard and Guy R. Brewer Boulevard in Queens. § 87(2)(b) and § 87(2)(b) met § 87(2)(b) outside his home to return § 87(2)(b) bag that had been in § 87(2)(b) car when it was seized a few hours earlier. Police officers from the 113th Precinct stopped the car again. Additional officers, including Police Officer Anthony Lombardi, arrived at the scene. PO Lombardi frisked and searched § 87(2)(b) bag, and questioned, frisked, and searched § 87(2)(b) PO Lombardi failed to provide a business card to § 87(2)(b) and failed to prepare a Stop Report or a Consent Search Report.

§ 87(2)(b) felt “harassed” after his car was stopped twice in the span of a few hours for the minor offense of having an air freshener hanging from his rearview mirror. Dec. 19 Tr., p. 21 line 4. § 87(2)(b) explained that he does not “do anything . . . to bring attention to [him]self” and is not in the area regularly enough to be known. Dec. 19 Tr., p. 21 lines 6-8. § 87(2)(b) believed the vehicle stops involved racial profiling because the stops were “for no apparent reason.” Dec. 19 Tr., p. 49 lines 14-19.

ARGUMENT

I. The Assistant Deputy Commissioner Erred in the Application of the Legal Standard for Analyzing Charges of Racially Biased Policing

The Assistant Deputy Commissioner accurately identified the legal standard governing charges of taking law enforcement action based upon actual or perceived race (Decision, pp. 25-26). As the Court explained, NYPD Administrative Guide Section 304-17: Department Policy Prohibiting Racial Profiling and Bias-Based Policing prohibits a “decision to initiate enforcement action against a person [that] is motivated even in part by a person’s actual or perceived race, color, ethnicity or national origin, . . . unless the officer’s decision is based on a specific and reliable suspect description that includes not just race, age, and gender, but other identifying characteristics or information.” Admin. Guide § 304-17 ¶ 3 (emphasis added). Administrative Guide § 304-17’s prohibition on racially motivated police-initiated enforcement action applies not only to vehicle stops, but to any police-initiated enforcement action, “including, but not limited to, arrests, Level 3 Terry stops, frisks, searches, [and] summonses.” *Id.*

The Court correctly elaborated that race does not have to be the sole, primary, or predominant motivation for the law enforcement action in question to sustain an allegation of racially biased policing. *See Village of Arlington Heights v. Metro. Housing Dev. Corp.*, 429 U.S. 252, 265 (1977); *United States v. City of Yonkers*, 96 F.3d 600, 611-12 (2d Cir. 1996); *Floyd v. City of New York*, 959 F.Supp.2d 540, 571 (S.D.N.Y. 2013) (applying the *Arlington Heights/Yonkers* motivating factor standard to allegations of discriminatory policing); *Raza v. City of New York*, 998 F.Supp.2d 70, 79-80 (E.D.N.Y. 2013) (same); *Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1163-64 (C.D. Cal. 2022) (same). If the preponderance of the evidence establishes that the civilian’s race played any role in the officer’s decision making, the racial profiling allegation should be sustained, regardless of any non-discriminatory reasons the officer gives for their actions. *Yonkers*, 96 F.3d at 612; *Raza*, 998 F.Supp.2d at 79-80 (E.D.N.Y. 2013); *Bennett v. Health Sys., Inc.*, 92 A.D.3d 29, 40 (1st Dep’t 2011). Thus, a law enforcement action that is otherwise legally justified (e.g., a vehicle stop supported by probable cause of a traffic violation) can still constitute racial profiling if the officer was motivated to take the action at least in part by the civilian’s actual or perceived race. *See PBA v. City of N.Y.*, 142 A.D.3d 53, 66-67 (1st Dep’t 2016) (“To be sure, police conduct that may be lawful for search and seizure purposes may nonetheless violate equal protection principles” where “the officer is motivated by an intent to discriminate”); *Floyd*, 959 F.Supp.2d at 667 (“the [] position that racial profiling cannot exist provided that a stop is based on reasonable suspicion . . . is fundamentally inconsistent with the law of equal protection”); *Raza*, 998 F.Supp.2d at 79 (holding that “the existence of [] reasonable suspicion or probable cause does not automatically defeat” a religious

profiling claim and that “[e]ven if Defendants’ investigations of Plaintiffs were supported by criminal predication, if those investigations were improperly influenced by Plaintiffs’ religion, they may be unconstitutional”).

In addition, a law enforcement official’s actions “need not be motivated by ill will, enmity, or hostility” to be discriminatory; what matters is whether the officer intentionally treats a civilian differently because of one or more of their protected demographic traits (e.g., race, religion, etc.). *See Floyd*, 959 F.Supp.2d at 662; *Hassan v. City of N.Y.*, 804 F.3d 277, 297-98 (3d Cir. 2015).

As the court also correctly recognized, “racially discriminatory intent may be established through circumstantial evidence.” (Decision pp. 25-26); *see also Millan-Hernandez v. Barr*, 965 F.3d 140, 148 (2d Cir. 2020); *Bennett v. Health Sys., Inc.*, 92 A.D.3d at 40-41. However, rarely is one piece of circumstantial evidence sufficient on its own to establish racially discriminatory intent. The factfinder must instead consider the “totality of the relevant facts.” *Washington v. Davis*, 426 U.S. 229, 242 (1976); *Leblanc-Sternberg v. Fletcher*, 67 F.3d 412, 425 (2d Cir. 1995). Examples of circumstantial evidence to consider include, but are not limited to:

- (i) the sequence of events leading up to the law enforcement activities at issue;
- (ii) the officers’ violation of law and/or department policies and procedures during the incident in question;
- (iii) the falsity of the officers’ non-discriminatory explanations for their actions;
- (iv) the officers’ departure from their own and/or their fellow officers’ customary practices during the incident in question; and
- (v) data showing a pattern of racial disparities in the officers’ enforcement activity over time.

However, after accurately identifying this legal standard and enumerating each of these categories of relevant circumstantial evidence, the draft decision erred in applying this standard in multiple respects. First, the draft decision failed to consider all of the aforementioned categories of circumstantial evidence and how the evidence in each category presented at trial supports a finding of racially biased policing in this case. Second, the draft decision misinterpreted and mischaracterized the data analysis evidence presented at trial and the role of that evidence in this “totality of the relevant facts” analysis. Lastly, the draft decision failed to assess any of the circumstantial evidence presented regarding the charge of racially biased policing against Respondent Lombardi.

A. The Court Failed to Consider Relevant Evidence Supporting the Finding of Racially Biased Policing.

Each of the five categories of circumstantial evidence identified by the draft decision supports a finding of racially biased policing in this case. However, in analyzing the racially biased policing charges against Respondents McCrain and Sinclair, the draft decision did not discuss evidence of the falsity of the officers’ non-discriminatory explanations for their actions or weigh the full evidence of the sequence of events leading up to the law enforcement activities at issue or the officers’ violations of law and department policies and procedures during the incident in question. These categories of evidence were not even referenced in regard to Respondent Lombardi.

i. Sequence of Events Leading Up to the Law Enforcement Activities at Issue

The draft decision correctly articulates that “evidence that an officer knew an individual’s race before stopping a vehicle can support an inference that the individual’s race may have played a role in the officer’s decision to take such action.” Decision p. 27, citing *Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1164-65 (C.D. Cal. Nov. 23, 2022); *Commonwealth v. Long*, 152 N.E.3d 733, 739-40 (Mass. 2020);

Marshall v. Columbia Lea Reg'l Hosp., 345 F.3d 1157, 1169 (10th Cir. 2003). The draft decision also correctly emphasizes that the “prohibition on racially motivated police-initiated enforcement action applies not only to vehicle stops, but to any police-initiated enforcement action, ‘including, but not limited to arrests, [], frisks, searches, [and] summonses’” (Decision p. 25). However, the draft decision then erroneously determined that the evidence “is insufficient to support the conclusion that Respondents knew the race of the occupants before stopping the vehicle” (Decision p. 28), without even acknowledging that Respondents certainly knew the race of the vehicle’s occupants prior to questioning and frisking them, arresting § 87(2)(b) and seizing and searching his vehicle, all law enforcement actions which, if racially motivated, would provide a sufficient basis for finding Respondents guilty of racially biased policing, regardless of whether their initial stops of § 87(2)(b) vehicle were racially motivated.

First, the CCRB disagrees with the draft decision’s conclusion that the evidence is insufficient to support the conclusion that Respondents McCrain and Sinclair knew the race of the occupants before stopping the vehicle (Decision, p. 28). PO McCrain testified that he and PO Sinclair could observe an air freshener hanging from the rearview mirror and could “see silhouettes of four heads” before stopping § 87(2)(b) car. Dec. 19 Tr., p. 65 line 20 - p. 66 line 3. The two individuals sitting in the back seat – the unidentified individual, later frisked by PO McCrain, and § 87(2)(b) later frisked by PO Sinclair – had braided hair and a short afro. *see* CCRB Ex. 2 at 6:02-6:15, CCRB Ex. 3 at 6:05-6:15. Given that the officers could see a small air freshener hanging from the rearview mirror as well as the outlines of heads that included identifiable hairstyles that are commonly associated with Black men before pulling over the car, it is reasonable to infer that PO McCrain and PO Sinclair more likely than not knew there were Black men in the car when they decided to stop the vehicle.

Second, and more importantly, it is undisputed that PO McCrain and PO Sinclair could identify § 87(2)(b) race and the race of the three passengers in the car as soon as the officers were standing next to the car and before they made any other decisions. Dec. 19 Tr., p. 80 lines 10-16, p. 104 lines 10-15. Thereafter, PO McCrain and PO Sinclair ordered everyone out of the car, conducted several unlawful frisks, asked vehicle occupants about weapons without any basis, repeatedly asked to search § 87(2)(b) car, arrested § 87(2)(b) and unlawfully seized and searched § 87(2)(b) car. Each of these actions was taken at PO McCrain’s and PO Sinclair’s discretion and when both officers already knew that all of the vehicle’s passengers were Black men.

Finally, the draft decision ignored evidence that PO Lombardi made specific observations of § 87(2)(b) physical appearance upon approaching § 87(2)(b) vehicle that included a description of § 87(2)(b) clothing and “afro haircut.” Dec. 19 Tr., p. 121 lines 21-24. As afro haircuts are commonly associated with Black individuals, it can be inferred that PO Lombardi knew § 87(2)(b) race as he approached the vehicle. Moreover, PO Lombardi could certainly discern § 87(2)(b) race as PO Lombardi stood next to the car, looking in at § 87(2)(b) before PO Lombardi asked § 87(2)(b) any questions or went on to conduct unlawful frisks and searches of § 87(2)(b).

Thus, this category of circumstantial evidence, in combination with the other evidence discussed below, supports the inference that at least some of PO McCrain’s and PO Sinclair’s law enforcement actions during the December 20, 2022 stop, and at least some of PO Lombardi’s law enforcement actions during the December 21, 2022 stop, were motivated at least in part by race.

ii. Violations of Law and Departmental Policy

The fact that a law enforcement action was taken in violation of the law (e.g., arrests, searches, and traffic stops made without probable cause, investigatory stops made without reasonable suspicion, etc.) can, in combination with other circumstantial evidence, support a finding that such action was

racially motivated. *Rodriguez v. Barr*, 943 F.3d at 143 (“the sheer paucity of evidence supporting a finding of probable cause buttresses the conclusion that the arrest was racially motivated”); *Millan-Hernandez v. Barr*, 965 F.3d at 148 (“We have recognized that, when a law enforcement officer detains and questions an individual about her immigration status although she is not suspected of a crime, those circumstances offer a strong suggestion that the search or seizure was improperly based on race”); *Marshall*, 345 F.3d at 1169 (The “lack of probable cause for the ultimate stop . . . would be evidence that the officer’s initial decision to pull [the driver] over was pretextual.”); *Anderson v. Cornejo*, 284 F.Supp.2d 1008, 1055 (N.D. Ill. 2003) (“[T]he lack of adequate suspicion” in combination with other circumstantial evidence, such as false statements on police paperwork, can support “a reasonable inference that [the police officer] acted, at least in part” because of the civilian’s race), *vacated and rev’d in part on other grounds*, 355 F.3d 1021 (7th Cir. 2004). Similarly, actions taken in violation of police department policy may suggest that the subject officer acted with a discriminatory purpose. *See Rodriguez*, 943 F.3d at 142; *Long*, 152 N.E.3d at 740 n.12.

The draft decision gestures to this category of circumstantial evidence by acknowledging that “Respondents McCrain and Sinclair committed various administrative infractions” including “exceed[ing] their authority in questioning and frisking the other occupants of § 87(2)(b) car” (Decision p. 27). This characterization dramatically understates the myriad violations of law and policy that took place throughout both the December 20, 2022 vehicle stop and the December 21, 2022 vehicle stop.

1. December 20, 2022 Incident

First, as referenced briefly in the draft decision’s consideration of the bias charges and in greater detail in the discussion of Specifications 1 & 2 against Respondent McCrain (Decision, pp. 13-15) and Specifications 1-4 against Respondent Sinclair (Decision, pp. 17), Respondents McCrain and Sinclair unlawfully questioned and frisked all three of the Black men riding in § 87(2)(b) car.

Second, not mentioned in the analysis of the bias specification but analyzed in the discussion of Specification 3 against PO McCrain (Decision, pp. 15-17), PO McCrain then improperly asked § 87(2)(b) if the officers could search his car several times. *See* CCRB Ex. 2 at 6:24-6:55. PO McCrain asked § 87(2)(b) “Do you guys have anything illegal in the car?” § 87(2)(b) shook his head, and PO McCrain asked, “Do you mind if we search it?” § 87(2)(b) shook his head again and replied, “There’s nothing in the car, honestly, no.” PO McCrain asked, “You would be okay with us searching it?” § 87(2)(b) said, “There would be no reason to.” PO McCrain said, “It’s up to you.” § 87(2)(b) repeated, “There would be no reason to. There’s nothing in the car.” § 87(2)(b) confirmed that he only had a little bit of weed in the car after PO Sinclair and PO McCrain each asked if there was anything other than weed in the car. PO McCrain then stepped toward the side of the car and shined his flashlight into the backseat through the open passenger door. PO McCrain stepped forward and shined his flashlight into the driver’s seat through the window and then again looked into the backseat. CCRB Ex. 2 at 7:20-7:45. Less than two minutes later, PO Sinclair asked § 87(2)(b) “You got nothing else in the car?” § 87(2)(b) replied that there was only weed. PO Sinclair asked, “Mind if we check?” § 87(2)(b) said for a third time, “There’s no reason to.” CCRB Ex. 2 at 9:04-9:14.

As discussed in the draft decision, Respondents had no present indication that any occupant of § 87(2)(b) car was involved in criminal activity (Decision, pp. 13-15,17). Under New York law, founded suspicion of criminality is also required to ask the driver of a vehicle that has been stopped for a traffic infraction for consent to search the vehicle. *People v. Williams*, 300 A.D.2d 684, 684-85 (2d Dep’t 2002); *People v. Battaglia*, 86 N.Y.2d 755, 756 (1995). As Respondents lacked the requisite founded suspicion to ask pointed or accusatory questions, their questions regarding weapons and seeking consent to search the vehicle, and their frisks of the occupants of § 87(2)(b) vehicle, were unlawful and in violation of NYPD Patrol Guide Procedure 212-11. Moreover, these law enforcement actions were

unrelated to the observed traffic violation – an air-freshener hanging from the review mirror – that purportedly led the officers to initiate the traffic stop, and such disconnect can itself be evidence of racial motivation. *See Commonwealth v. Long*, 152 N.E.3d at 740 n.10 (holding that “whether the officer’s conduct during the stop was consistent with, and limited to, that necessary to enforce the motor vehicle violation” is relevant circumstantial evidence to consider when analyzing a racially biased traffic stop allegation against a police officer).

Third, as discussed in relation to Specifications 4 & 5 regarding Respondent McCrain and Specifications 5 & 6 regarding Respondent Sinclair (Decision pp. 18-19), Respondents impounded and searched § 87(2)(b) car in violation of the law and NYPD policy. PO McCrain maintained that he could not release the car on scene after § 87(2)(b) was arrested for driving with a suspended license. Dec. 19 Tr., p. 84 lines 4-20. PO McCrain and PO Sinclair described conducting an inventory search of § 87(2)(b) vehicle, but they failed to create an itemized list of valuables or any property invoice for the property in the car. Dec. 19 Tr., p. 85 line 8 - p. 86 line 7, p. 107 lines 7-19. As discussed in the draft decision, the impoundment and search of § 87(2)(b) car contradicted NYPD Patrol Guide Procedure 209-26. The only legitimate purpose of impounding the car would be to safeguard the vehicle. Here, where two of § 87(2)(b) friends had driver’s licenses and could have taken the car from the scene, and § 87(2)(b) explicitly asked to do so, there was no need for the police to safeguard the vehicle. Instead, the most likely explanation for the officers’ conduct is that Respondents were motivated to search § 87(2)(b) car for contraband or other evidence of criminal activity, as shown by their repeated requests for § 87(2)(b) consent to search the car prior to placing him under arrest. Only after § 87(2)(b) denied the officers’ requests for consent to search the vehicle, and after Respondent McCrain saw what he could see looking into the car with his flashlight, did the officers decide to take the vehicle into police custody and perform an inventory search.

The CCRB notes that even if the seizure of § 87(2)(b) car had been lawful, which it was not, the so-called inventory search conducted by Respondents at the stationhouse was not. “[A]n inventory search must not be a ruse for a general rummaging in order to discover incriminating evidence. To guard against this danger, the search must be conducted pursuant to an established procedure clearly limiting the conduct of individual officers that assures that the searches are carried out consistently and reasonably. While incriminating evidence may be a consequence of an inventory search, it should not be its purpose.” *People v. Padilla*, 21 N.Y.3d 268, 272 (2013) (internal citations and quotation marks omitted). The New York Court of Appeals has also emphasized that “[t]he policy or practice governing inventory searches should be designed to produce an inventory,” referring to “a meaningful inventory list” as “the hallmark of an inventory search.” *People v. Johnson*, 1 N.Y.3d 252, 256 (2003). Respondents did not follow the established procedure outlined in the Patrol Guide to properly invoice § 87(2)(b) vehicle and its contents. PO McCrain and PO Sinclair explained that § 87(2)(b) arrest was reassigned shortly after they conducted the inventory search of § 87(2)(b) car, but neither officer explained why the arrest being reassigned would affect their responsibility to document the vehicle search they conducted without the arresting officer. Dec. 19 Tr., p. 85 line 8 - p. 86 line 7, p. 89 line 17 - p. 90 line 4, p. 101 lines 4-10, p. 107 lines 7-19. The Patrol Guide does not instruct that an inventory of the car or associated property vouchers are the responsibility of the arresting officer rather than the officers conducting the inventory search.

Finally, Respondents violated NYPD policy by failing to prepare a Vehicle Report, Stop Report, or Consent Search Report to document the various law enforcement actions they took during this incident. Respondent McCrain offered no explanation for why he did not fill out any of this paperwork. Dec. 19 Tr., p. 92 lines 8-10. Respondent Sinclair merely posited that it “must have slipped [his] mind” to fill out any paperwork for the two frisks he conducted. Dec. 19 Tr., p. 100 lines 17-24.

The failure to record the law enforcement actions at issue is itself probative of a potentially discriminatory motive because, as several legal authorities have noted, a failure to record one's actions when required by agency policy to do so can support an inference that an alleged discriminator is trying to conceal discrimination or, at the very least, that their non-discriminatory explanations for their actions are not credible. See Twelfth Report of the Independent Monitor, *Floyd v. City of New York*, 08 Civ. 1034, ECF No. 798-1 at 74 (S.D.N.Y. Nov. 30, 2020) (noting that failure to record stops of Black pedestrians "could be obscuring continued stop practices and patterns that violate [] the Equal Protection Clause of the 14th Amendment"); *Burton v. Freescale Semiconductor, Inc.*, 798 F.3d 222, 240 (5th Cir. 2015) ("[A] lack of contemporaneous documentation coupled with evidence that such documentation should exist" can be "circumstantial evidence of pretext").

This category of circumstantial evidence thus lends significant support to an inference that Respondents acted with racially biased motives during this incident. The officers were evidently intent on frisking all occupants of the car and conducting a thorough search of the vehicle itself, even without the legal authority to do so. Given the complete lack of any indication or evidence of criminality, the question remains – what motivated the officers to take so many unlawful and unnecessary actions? As supported by the stated law, the disconnect between the officers' actions and the original basis for the vehicle stop and the officers' failure to document many of their unlawful actions supports the inference, bolstered by other evidence discussed herein, that Respondents were motivated at least in part by racial bias.

2. December 21, 2022 Incident

Respondent Lombardi was the fifth officer to approach during the December 21, 2022 stop of § 87(2)(b) vehicle. Respondent Lombardi did not know the basis for the car stop, Dec. 19 Tr., pp. 114-15, but went on to violate several laws and NYPD policies by questioning, frisking, and searching § 87(2)(b) and frisking and searching § 87(2)(b) bag.

PO Lombardi's BWC captures PO Lombardi approaching § 87(2)(b) car and standing near the back passenger door for about a minute. CCRB Ex. 1 at 1:04-2:00. PO Lombardi shined his flashlight into the back passenger seat and observed § 87(2)(b) who was on his phone, until the window was rolled down. CCRB Ex. 1 at 2:00-2:35. PO Lombardi told § 87(2)(b) that he did not have his seatbelt on and asked for § 87(2)(b) ID. CCRB Ex. 1 at 2:35-2:45. § 87(2)(b) said he did not have his ID, but pointed to the building where he lived, spelled his name, and provided his birthday. PO Lombardi appeared to enter § 87(2)(b) information on his phone and then asked § 87(2)(b) to step out of the car. CCRB Ex. 1 at 2:35-3:52.

PO Lombardi testified that he did not suspect § 87(2)(b) of any crimes or violations other than possibly a seatbelt violation, and that he had not seen the car in motion and did not know if § 87(2)(b) was riding in the car while it was moving or if § 87(2)(b) had removed his seatbelt after the car was stopped and before PO Lombardi arrived. Dec. 19 Tr., p. 123 line 7 - p. 124 line 6. PO Lombardi also did not intend to write § 87(2)(b) a summons for any possible seatbelt violation, but asked for § 87(2)(b) ID regardless. Dec. 19 Tr., p. 125 lines 9-18. PO Lombardi testified at trial that he asked § 87(2)(b) to step out of the car because PO Sprague said "bag," Dec. 19 Tr., pp. 117-18, but, as PO Lombardi acknowledged, in his statement to the CCRB, he said the only reasons he asked § 87(2)(b) to step out of the car were the "very slight movement" § 87(2)(b) made when PO Lombardi was approaching the vehicle, Dec. 19 Tr., p. 116 lines 6-8, – which (1) cannot be seen on BWC, see CCRB Ex. 1 at 1:00-2:00, and (2) PO Lombardi admits could have been an adjusting motion, Dec. 19 Tr., p. 122 lines 10-15 – and the fact that § 87(2)(b) did not have an ID, Dec. 19 Tr., pp. 128-30.

As § 87(2)(b) stepped out of the car, PO Lombardi asked what was in the bag, frisked the bag and opened the bag to look inside. CCRB Ex. 1 at 3:54-4:00. PO Lombardi testified that he frisked the bag

because he noticed something heavy in the bag and saw the outline of a rectangle that was six to seven inches long. Dec. 19 Tr., p. 131 line 15 - p. 132 line 10. Upon feeling a dense hard rectangle, PO Lombardi opened the bag to search the bag for the rectangle that PO Lombardi thought could be a firearm, even though he had not felt an L shape. The object was a portable charger, exactly what § 87(2)(b) had said was in the bag. Dec. 19 Tr., p. 132 line 11 - p. 133 line 17.

After searching § 87(2)(b) bag, PO Lombardi asked § 87(2)(b) if he had anything else on him, “knives or anything?” while he frisked § 87(2)(b) jacket pockets. CCRB Ex. 1 at 4:00-4:04. PO Lombardi asked this question and conducted this frisk because § 87(2)(b) jacket was “protruding,” and PO Lombardi believed § 87(2)(b) jacket had an object, possibly a knife, in the pocket. Dec. 19 Tr., p. 133 line 18 - p. 134 line 5. No bulge or protrusion can be seen on § 87(2)(b) jacket in PO Lombardi’s BWC. See CCRB Ex. 1 at 2:00-4:20. PO Lombardi believed the object he thought he saw in § 87(2)(b) pocket was about four inches long, the exact length of a blade that would have been illegal. However, § 87(2)(b) did not have anything in his pockets at all; all PO Lombardi felt in his frisk was § 87(2)(b) soft jacket. Dec. 19 Tr., p. 134 lines 6-18.

PO Lombardi then asked § 87(2)(b) to stand at the back of the vehicle. At the back of the car, § 87(2)(b) asked if he could put his hands in his pockets as he held his hands just outside his pockets. CCRB Ex. 1 at 4:04-4:14. PO Lombardi interpreted § 87(2)(b) reaching his hands towards his pockets but holding them outside of his pockets, CCRB Ex. 1 at 4:12-4:15, as § 87(2)(b) indicating that PO Lombardi had consent to search him. Dec. 19 Tr., p. 135 lines 1-22. PO Lombardi testified that he asked if § 87(2)(b) minded if PO Lombardi checked § 87(2)(b) pockets but did not tell § 87(2)(b) that he did not have to consent to the search. Dec. 19 Tr., p. 135 line 23 - p. 126 line 3. PO Lombardi cannot be heard asking § 87(2)(b) for consent to search on PO Lombardi’s BWC, but can be heard asking “you got nothing in your pockets, right? No knives or anything like that?” as he frisks and searches § 87(2)(b) jacket. CCRB Ex. 1 at 4:14-4:20. PO Lombardi stated that he frisked and entered § 87(2)(b) jacket pockets to make sure they were empty and because he perceived § 87(2)(b) to be giving him consent to check him. § 87(2)(b) pockets were empty. Dec. 19 Tr., p. 136 lines 4-24.

According to NYPD Patrol Guide Procedure 212-11, officers may ask pointed or accusatory questions when the officer has “founded suspicion that criminal activity is afoot.” If an officer has “founded suspicion,” the officer can also seek consent to search, but the consent must be voluntarily given. Any consent request and subsequent refusal or search must be documented, along with the apparent race, ethnicity, gender, and age of the person who was the subject of the request and search, on a Consent Search Report. See also N.Y.C. Admin. Code § 14-173. A non-consensual frisk is authorized only when the officer reasonably suspects that the subject of the frisk is armed and dangerous. Where a frisk reveals an object that the member of the service reasonably suspects may be a weapon, the member of service may search only those interior portions of the stopped person’s clothing to remove the weapon. “A police officer cannot ‘frisk’ a bag or item of personal property unless the officer has a reasonable suspicion that the person is armed and dangerous and the bag or item could contain a weapon and is within the person’s reach.” NYPD Patrol Guide Procedure 212-11.

PO Lombardi did not have founded suspicion that criminal activity was afoot or reasonable suspicion that § 87(2)(b) was armed and dangerous. According to PO Lombardi’s own testimony, he did not suspect § 87(2)(b) of anything more than a possible seatbelt violation. PO Lombardi’s BWC shows that § 87(2)(b) made no motions with his arms or hands while sitting in the car, let alone any motions that could be interpreted as furtive, and that there was no discernable bulge on § 87(2)(b) jacket, let alone a bulge that could be mistaken for a four-inch knife. Without additional evidence, PO Lombardi’s belief that § 87(2)(b) could possess a firearm in his bag based on the observation of a rectangular object is innocuous, as the shape could be produced by a myriad of commonplace objects. See *Floyd*, 959 F.Supp.2d at 614, 631 n.489 (holding that “[t]he outline of a commonly carried object such as a wallet or cell phone does not

justify a stop or frisk,” and that a cell phone in a stopped civilian’s jacket pocket did not create a “suspicious bulge”). Furthermore, it was unreasonable for PO Lombardi to search the bag after feeling the dense rectangle of a portable charger during his frisk. PO Lombardi’s questioning, frisking, and searching of § 87(2)(b) and § 87(2)(b) bag were legally unjustifiable.

In addition, PO Lombardi failed to provide § 87(2)(b) with a business card in violation of the New York City Right to Know Act, *see* N.Y.C. Admin. Code § 14-174, which PO Lombardi admitted was a mistake, Dec. 19 Tr., p. 136 line 25 - p. 137 line 11. PO Lombardi also failed to complete a Stop Report or a Consent Search Report for his frisk and search of § 87(2)(b) and his bag and failed to document his frisk and search of § 87(2)(b) and his bag in his memo book or anywhere else. Dec. 19 Tr., p. 137 lines 18-19, p. 138 lines 4-11.

As with Respondents McCrain and Sinclair, this category of circumstantial evidence provides strong support for the inference that Respondent Lombardi acted with racially biased motives during this incident. Respondent Lombardi repeatedly questioned and frisked § 87(2)(b) frisked and searched § 87(2)(b) bag, and searched § 87(2)(b) without any indication or evidence of criminality, or even any knowledge of the basis for the original vehicle stop. Respondent Lombardi’s complete failure to document this unjustified conduct, bolstered by the other evidence in the record, supports the inference that Respondent Lombardi was motivated at least in part by racial bias in taking law enforcement action during this vehicle stop.

iii. Falsity of Non-Discriminatory Explanations for the Officers’ Actions

The falsity of a law enforcement officer’s race-neutral explanation for their actions can, in combination with other circumstantial evidence, also support a finding that the officer was trying to conceal a discriminatory motive. *See Turkmen v. Hasty*, 789 F.3d 218, 256-57 (2d Cir. 2015) (“Based on the foregoing allegations of duplicity regarding the basis for confining [plaintiffs], it is reasonable to infer that [defendants] approved this false document to justify detaining actual or perceived Arabs and Muslims in the harsh conditions of the ADMAX SHU based on discriminatory intent.”), *rev’d on other grounds*, 137 S.Ct. 1843 (2017); *Rodriguez v. Barr*, 943 F.3d at 143 (“One can reasonably infer from the agents’ preparation of an unreliable report at the time of the arrest, which would ultimately be used against Rodriguez, that the arrest was premised on an impermissible basis[,] [a]nd, given the other facts in this case, one can infer that this impermissible basis was race.”); *Anderson v. Cornejo*, 284 F.Supp.2d at 1051, 1055 (Noting that “proof of the pretextual nature of the grounds for a search may be a basis for inferring discriminatory motive” and holding that officer’s false statement as to the basis for strip search, in combination with “lack of adequate of suspicion” and statistical evidence of racial disparities in officer’s past search activity “is enough to find that [officer] acted, at least in part because [plaintiff] is an African-American woman.”).

After naming this category of circumstantial evidence as relevant to the bias inquiry, the draft decision fails to discuss the implications of the numerous false explanations provided by all Respondents for many of the law enforcement actions they took during the December 20 and 21, 2022 incidents (Decision, pp. 25-35). Overlooking this category of evidence is particularly material given the Court’s emphasis that “circumstantial evidence must be such as to support the conclusion that the inference drawn ‘is the only one that is fair and reasonable’” in a civil service disciplinary proceeding. (Decision, p. 27 quoting Disciplinary Case No. 2015-13328 (June 8, 2017)). The CCRB contends that no other fair and reasonable explanation for the officers’ conduct was offered here. In the absence of any fair and reasonable, race-neutral alternative explanation for the many violations of law and policy committed by the Respondents, and in conjunction with the other circumstantial evidence presented here, the inference can and should be drawn that the Respondents were motivated, at least in part, by racial bias.

Respondents McCrain and Sinclair provided few race-neutral explanations for their numerous unlawful enforcement actions during the December 20, 2022 incident, and several of the explanations they did give were false.

First, PO McCrain repeatedly emphasized that he asked if the unidentified individual had weapons as an “officer safety thing.” Dec. 19 Tr., p. 82 lines 2-7, p. 91 lines 9-11. PO Sinclair invoked the same “officer safety” explanation for why he asked the occupants of the vehicle to stand at the back of the car. Dec. 19 Tr., p. 100 lines 9-16. However, PO McCrain admitted that he had no reason to believe that the unknown individual had a weapon or posed a danger to PO McCrain. Dec. 19 Tr., p. 92 line 24 - p. 93 line 11. As discussed in subsection (ii) above, neither PO McCrain nor PO Sinclair had the requisite level of suspicion to question the occupants of § 87(2)(b) vehicle or ask for consent to frisk them as there was no indication of any criminality or that any individual had a weapon.

In addition, Respondents McCrain and Sinclair testified to seeing smoke “emanating from the rear window” in addition to smelling the odor of marijuana after they initiated the vehicle stop for an air freshener obstructing the windshield. Dec. 19 Tr., p. 78 line 6 - p. 79 line 20, p. 97 line 23 - p. 98 line 11, p. 103 line 25 - p. 104 line 6. However, no smoke can be seen coming from the car in either officer’s BWC. *See* CCRB Exs. 2-3. PO Sinclair’s BWC captures a cloud of exhaust coming from the car’s tailpipe, CCRB Ex. 3 at 1:00-1:06, but there is no smoke coming from the cracked back window as PO Sinclair gets closer to the window. CCRB Ex. 3 at 1:06-1:12. At certain points during PO Sinclair’s BWC recording, PO Sinclair points his flashlight at the car, and his flashlight appears to illuminate what could be condensation or exhaust, but there are no clouds of marijuana smoke. *See, e.g.*, CCRB Ex. 3 at 1:14-1:30, 2:25-2:35, 4:30-4:35.

Respondent McCrain also testified that he had discretion to either arrest § 87(2)(b) or issue him a verbal warning for driving with a suspended license, but PO McCrain notably could not explain why he and PO Sinclair decided to arrest § 87(2)(b) here instead of issuing him a verbal warning. Dec. 19 Tr., p. 70 lines 16-25.

Finally, PO McCrain testified that he could not release § 87(2)(b) car to any of § 87(2)(b) friends with a valid license after § 87(2)(b) was arrested for driving with a suspended license, Dec. 19 Tr., p. 84 lines 4-20, and PO Sinclair similarly told § 87(2)(b) that he could not take § 87(2)(b) car because it was “part of § 87(2)(b) possessions,” CCRB Ex. 2 at 14:48-15:00. However, as discussed in subsection (ii) above, no Patrol Guide procedure required the seizure of § 87(2)(b) car, and because there was no safeguarding function to be served, it was in fact unlawful for the officers to seize the vehicle. PO McCrain’s and PO Sinclair’s explanations to the contrary are false.

PO Lombardi similarly offered few race-neutral explanations for his many unlawful enforcement actions during the December 21, 2022 vehicle stop, and the explanations he did provide were false and shifting.

First, PO Lombardi’s reasons for frisking § 87(2)(b) – namely that (1) § 87(2)(b) made a small movement that could have been an adjusting movement, Dec. 19 Tr., p. 121 line 25 - p. 122 line 15, (2) § 87(2)(b) jacket had a bulge or protrusion, Dec. 19 Tr., p. 133 line 18 - p. 134 line 5, and (3) § 87(2)(b) indicated his consent to a search after PO Lombardi asked to check § 87(2)(b) pockets, p. 135 line 1 - p. 136 line 3—are blatantly untrue from a review of PO Lombardi’s BWC recording. *See* CCRB Ex. 1 at 1:00-2:00 (§ 87(2)(b) cannot be seen making any movements), 2:00-4:20 (§ 87(2)(b) has no bulges on his jacket), 4:12-4:20 (§ 87(2)(b) reaches towards his pockets to put his hands in his pockets, but holds his hands outside his pockets while he seeks permission to enter his pockets with his hands. PO Lombardi cannot be heard asking if he can check § 87(2)(b) pockets.).

PO Lombardi attempted to offer a new reason for asking § 87(2)(b) to get out of the car when he testified that PO Sprague saying “bag” caused PO Lombardi to ask § 87(2)(b) to step out. Dec. 19 Tr., pp. 117-18. However, PO Lombardi acknowledged that in his previous statement to the CCRB – which was made closer in time to the incident date and during which he reviewed his BWC from the incident – PO Lombardi said the only reasons he asked § 87(2)(b) to step out of the car were the “very slight movement” § 87(2)(b) made when PO Lombardi was approaching the vehicle and the fact that § 87(2)(b) did not have an ID. PO Lombardi did not mention PO Sprague and confirmed that there were no other reasons he asked § 87(2)(b) to step out of the car when the CCRB investigator specifically asked for any additional reasons PO Lombardi had § 87(2)(b) exit the vehicle. Dec. 19 Tr., pp. 128-30. As discussed above, the slight movement PO Lombardi claims § 87(2)(b) made was not captured on PO Lombardi’s BWC and PO Lombardi admitted that whatever he saw could have been § 87(2)(b) merely adjusting himself. As for not having an ID, § 87(2)(b) told PO Lombardi that they were right outside his building and gave PO Lombardi plenty of information with which to identify § 87(2)(b) including the spelling of his name and his birthday. CCRB Ex. 1 at 2:47-2:54. Dec. 19 Tr., p. 125 line 22 - p. 126 line 9.

PO McCrain, PO Sinclair, and PO Lombardi barely offered any explanations for their actions during these car stops, and the race-neutral explanations they did provide are demonstrably false. This category of circumstantial evidence therefore further supports the finding that the officers were trying to conceal a discriminatory motive and were motivated at least in part by racial bias.

iv. Departure from Customary Practices

A government official’s, including a police officer’s, departure from their or their agency’s customary practices in a given situation can support a finding that those officials acted with racially discriminatory intent. *Village of Arlington Heights*, 429 U.S. at 267; *Moore v. MTA*, 999 F.Supp.2d 482, 497-98 (S.D.N.Y. 2013); *Doe v. Village of Mamaroneck*, 462 F.Supp.2d 520, 548-49 (S.D.N.Y. 2006). Notably, “traffic stops initiated by officers whose primary assignment does not involve the enforcement of traffic laws might warrant particular scrutiny” for racially discriminatory motive. *Long*, 152 N.E.3d at 740 n.8.

The draft decision accurately noted that “Respondents stopped § 87(2)(b) vehicle for a minor VTL infraction, when their enforcement focus, as NST officers, was on more serious offenses.” Decision p. 27. The fact that Respondents were not responsible for addressing minor traffic infractions like an air freshener hanging from a rearview mirror begs the question why, on this particular occasion, did they decide to conduct a car stop for such a minor traffic violation. Neither officer offered an explanation at trial, but the most plausible answer is that they used the air freshener as a pretext to investigate the car’s four occupants for possible criminal activity, occupants whom, as discussed in subsection (i) above, it is reasonable to conclude the officers knew were Black.

Accordingly, as recognized by the Assistant Deputy Commissioner, this category of circumstantial evidence also supports an inference that PO McCrain and PO Sinclair acted with racially biased motives during their stop of § 87(2)(b) vehicle.

B. The Court Misinterpreted the Data Analysis Presented and the Role of the Statistical Evidence in the Analysis of the Charges of Racially Biased Policing.

The majority of the draft decision’s analysis of the charges of racially biased policing focused on a discussion of the statistical evidence demonstrating patterns of racial disparities in Respondents’ vehicle stop activity in the year preceding the December 20 and 21, 2022 incidents (Decision pp. 28-35). The Court recognized Dr. Alix Winter, the CCRB’s Chief Data Scientist, as an expert in the field of data analysis (Decision p. 29) and acknowledged that the data analysis Dr. Winter presented to the court did

“document comparative racial disparities between the drivers stopped by Respondents and those stopped by other officers in their precinct,” which “at first blush . . . raise serious questions” (Decision p. 31). The draft decision also acknowledged that “[c]ourts have widely recognized that data showing a pattern of racial disparities in a police officer’s enforcement actions is probative circumstantial evidence in a racial profiling case against that officer” (Decision p. 28, citing *U.S. v. Avery*, 137 F.3d 343, 355 (6th Cir. 1997); *Marshall*, 345 F.3d at 1168; *Anderson v. Cornejo*, 284 F.Supp.2d at 1050; *United States v. Hare*, 308 F.Supp.2d 955, 992 (D. Neb. 2004); *Johnson v. Holmes*, 782 Fed. Appx. 269, 281-82 (4th Cir. 2019); *Long*, 152 N.E.3d at 739-40; *Ballew*, 642 F.Supp.3d at 1165-67) and even accepted that Dr. Winter’s analysis “highlighted certain racial disparities” in the Respondents’ enforcement activities (Decision p. 35).¹

However, the draft decision then erroneously concluded that Dr. Winter’s analysis had “a significant gap” (Decision p. 32). Specifically, the Court found that Dr. Winter’s data analysis failed to establish a “causal inference” or “definitive conclusions” about the racial motivations of the Respondent officers during the incidents in question. *See* Decision p. 32 (“after assessing Dr. Winter’s data analysis and testimony, this tribunal is not persuaded that there is sufficient evidence to draw a causal inference about the effect of race on Respondent McCrain and Sinclair’s law enforcement actions on the night in question”); Decision p. 33 (“perhaps most important for this tribunal’s assessment, is that the approach used did not provide an evidentiary basis for finding a causal inference about the effect of race on police behavior”); Decision p. 35 (“In sum, definitive conclusions about bias-based policing cannot be drawn from the benchmarking method used here”).

As Respondents did not call an expert or present any statistical evidence to rebut Dr. Winter, this conclusion is not based on trial evidence or any legal authorities, but is apparently based instead on the Court’s own reading of certain published reports on racial bias in policing (Decision pp. 32-35, citing Lorie A. Fridell, *By the Numbers: A Guide for Analyzing Race Data from Vehicle Stops*, Police Executive Research Forum (2004); Greg Ridgeway and John MacDonald, *Methods for Assessing Racially Biased Policing* (RAND Corp. 2011), available at <https://www.rand.org/pubs/reprints/RP1427.html>; and Zingraff, M. T., Mason, M., Smith, W., Tomaskovic-Devey, D., Warrent, P., McMurray, H. L., and Fenlon, R. C., *Evaluating North Carolina State Highway Patrol Data: Citation, Warnings, and Searches in 1998*, report submitted to North Carolina Department of Crime Control and Public Safety and North Carolina State Highway Patrol (2000)). However, the Court’s critique of Dr. Winter’s data analysis misses the mark for two reasons: (1) the reports cited by the Court explicitly reject drawing “definitive conclusions” about racial bias based on data alone; and (2) in requiring a “causal inference” or “definitive

¹ Dr. Winter’s analyses revealed that PO McCrain and PO Sinclair stopped a disproportionately high number of Black drivers as compared to the population of drivers available to be stopped, the drivers stopped by the other members of service in their command, and the drivers stopped in similarly situated vehicle stops. Dec. 18 Tr., p. 55 line 22 - p. 56 line 2, p. 56 lines 12-2, p. 62 lines 9-14, p. 62 line 22 - p. 63 line 6; Decision p. 31. Most notably, while 96% and 88% of drivers stopped by PO McCrain and PO Sinclair, respectively, were Black, only 77% of the 113th Precinct’s residential population and 52% of the combined residential population of the 113th Precinct and the census block groups within a 1 mile radius of the 113th Precinct is Black, and only 79% of drivers stopped by other 113th Precinct officers in similarly situated stops as PO McCrain’s stops and 74% of drivers stopped in similarly situated stops as PO Sinclair’s stops were Black. Dec. 18 Tr., p.55 lines 22-25, p. 58 lines 7-10, p. 64 lines 2-7, p. 93, lines 14-24.

Dr. Winter also determined that PO Lombardi has a pattern of over-stopping Black drivers relative to the population of drivers available to be stopped and as compared to the other members of service in his command who conduct vehicle stops. Dec. 18 Tr., p. 71 lines 1-25.

Dr. Winter found that all three officers issued summonses and arrested individuals following car stops at very low rates. Dec. 18 Tr., p. 59 line 22 - p. 60 line 24, p. 64 line 23 - p. 65 line 22. Dr. Winter also found that PO Lombardi searched an alarming 23% of the vehicles that he stopped, despite issuing summonses and making arrests at a low rate. Dec. 18 Tr., p. 73 lines 15-20.

conclusion” from the data analysis alone, the Court abandons the “totality of the relevant facts” analysis required when determining whether an officer acted with racially discriminatory intent. *See Washington v. Davis*, 426 U.S. 229, 242 (1976); *Leblanc-Sternberg v. Fletcher*, 67 F.3d 412, 425 (2d Cir. 1995).

First, the reports cited by the Court in fact acknowledge that no single, agreed-upon data analysis method can provide definitive proof of racially biased policing. Fridell explains, “As is true of social science in general, even strong methods will not provide definitive proof of the existence or lack of racially biased policing.” Lorie A. Fridell, *By the Numbers: A Guide for Analyzing Race Data from Vehicle Stops*, Police Executive Research Forum, 46 (2004). Rather, Fridell writes that analyses of enforcement activity data that reveal possible racially biased policing should be used to indicate where and/or in relation to which officers and/or types of enforcement activity further investigation is needed. Similarly, Ridgeway and McDonald explain, “There is no unifying method that can be applied to administrative data sources and definitively answer the question of whether the police are acting with racial bias.” Greg Ridgeway and John MacDonald, *Methods for Assessing Racially Biased Policing* (RAND Corp. 2011), 2, available at <https://www.rand.org/pubs/reprints/RP1427.html> (emphasis added). Likewise, courts have widely recognized that statistics alone are generally not sufficient to establish that an individual police officer’s treatment of a specific civilian was intentionally racially discriminatory. *See, e.g., Burgis v. N.Y. City Dep’t of Sanitation*, 798 F.3d 63, 69 n.5 (2d Cir. 2015); *Bussey v. Phillips*, 419 F.Supp.2d 569, 583 (S.D.N.Y. 2006); *Chavez v. Illinois State Police*, 251 F.3d 612, 647-48 (7th Cir. 2001).

Thus, unsurprisingly, when adjudicating allegations of racially biased policing against individual police officers, courts have not required statistical evidence to provide definitive conclusions on its own about the officers’ racially biased motives, but have instead determined whether a causal inference can be drawn based on all the evidence in the record, including statistical evidence of racial disparities as well as other important circumstantial evidence of racial bias. *See, e.g., Anderson v. Cornejo*, 284 F.Supp.2d at 1050-51; *Commonwealth v. Long*, 152 N.E.3d at 739-40; *Ballew*, 642 F.Supp.3d at 1165-67. By expecting Dr. Winter’s data analysis alone to prove such causal inference, the Court violated the well-established “totality of the relevant facts” framework that it was required to use to resolve the racially biased policing allegations in this case.

In addition to the draft decision’s overall misguided expectations for what Dr. Winter’s data analysis needed to show to support a guilty verdict on the racially biased policing charges, the Court’s specific criticisms of Dr. Winter’s methodology also fail. The draft decision takes issue with (1) the way Dr. Winter used Census data to measure racial disparities in Respondents’ vehicle stop data (Decision pp. 31-33), and (2) Dr. Winter’s definition of “similarly situated” vehicle stops (Decision pp. 33-35).

First, the draft decision rejects Dr. Winter’s use of “unadjusted Census data” as an “external benchmark” against which to measure racial disparities in Respondents’ vehicle stop data and states that “Census benchmarks with adjustments is a stronger method . . . for assessing the nature and extent of the racial disparities presented by Dr. Winter.” Decision p. 33. The Court then cites to *Commonwealth v. Long*, as an example of such an adjusted Census benchmark, noting that the statistical expert in that case “took pains to account in sophisticated ways for the possible presence of nonresident drivers.” *Id.* p. 33 n.9 (citing *Long*, 152 N.E.3d at 746). However, in distinguishing the data analysis in *Long* from Dr. Winter’s analysis, the Court ignored the fact that Dr. Winter employed an almost identical Census benchmark adjustment methodology as the one used in *Long*. In *Long*, the statistical expert estimated the demographics of the population of drivers available to be stopped by the subject officers using the Census data on the residential population in the census blocks where those officers conducted vehicle stops and, to account for the presence of non-resident drivers, the census blocks within a 1/5 mile radius of the places where those vehicle stops occurred. 152 N.E.3d at 745. Similarly, as Dr. Winter testified at trial, she measured the demographics of the population of drivers available to be stopped by the Respondent

officers using the Census data on the combined residential population of (i) the 113th Precinct – where the Respondent officers conducted their vehicle stops – and, to account for non-resident drivers, (ii) all census blocks within a one mile radius of the 113th Precinct. Dec. 18 Tr., p. 135 line 6 - p. 136 line 13.² The *Long* court found the Census benchmarking methodology in that case “more than sufficiently reliable to support a claim of selective enforcement and racial discrimination in making the traffic stop.” 152 N.E.3d at 746. Accordingly, the same is true for Dr. Winter’s methodology here.

Second, the draft decision concludes that “the racial/ethnic profile of the drivers to which an officer or group of officers is exposed is not similar to the racial/ethnic profile of the drivers to which the matched officers or matched group of officers are exposed” (Decision p. 35) because Dr. Winter’s analysis of “similarly situated” vehicle stops included officers with different assignments than Respondents (Decision pp. 33-35). The CCRB first notes that Dr. Winter’s definition of “similarly situated” stops is specifically designed to capture stops made by officers who are exposed to the same drivers by only considering stops made by officers who are assigned to the same command as the subject officer, and that occurred in the same police sectors, during the same days of the week and months of the year, and during the same times of day. Dec. 18 Tr., p. 57 lines 2-11.³ In addition, although the draft decision apparently asserts that a stop should not be considered “similarly situated” if it was conducted by “officers assigned to enforce traffic laws,” (Decision p. 34), the sole purpose of the vehicle stop in question was to address the exceedingly minor traffic violation of an air freshener hanging from a rearview mirror. Indeed, the data analysis revealed that the vast majority of the subject officers’ stops were for VTL infractions, not for criminal investigatory reasons (Dec. 18 Tr., p. 136 line 20 - p. 137 line 16), and all such stops must be based on an observed traffic infraction, regardless of the assignment or rank of the officer making the stop. Moreover, to the extent that the Respondent officers were using observed traffic infractions as pretext to conduct vehicle stops of Black drivers for some other purpose, that would be further circumstantial evidence of potential racial bias.⁴

Finally, the draft decision entirely ignores the data evidence presented regarding Respondent Lombardi merely because “Respondent Lombardi arrived on scene after the stop of the vehicle was conducted by other officers and played no role in the decision to stop the vehicle.” Decision p. 35. As discussed above, data showing a pattern of racial disparities in a police officer’s enforcement activity over time is important circumstantial evidence to consider in a “totality of the relevant facts” analysis of a racial profiling allegation against that officer (*see, e.g., Marshall v. Columbia Lea Reg’l Hosp.*, 345 F.3d 1157, 1168 (10th Cir. 2003); *Johnson v. Holmes*, 782 Fed.Appx. 269, 281-82 (4th Cir. 2019); *Commonwealth v. Long*, 152 N.E.3d 733, 739-40 (Mass. 2020)), and Administrative Guide § 304-17’s prohibition on racially motivated police-initiated enforcement action applies not only to vehicle stops, but to any police-initiated enforcement action, “including, but not limited to, arrests, Level 3 Terry stops, frisks, searches, [and] summonses.” Evidence of racial disparities in Respondent Lombardi’s enforcement actions is thus highly probative to whether law enforcement actions taken in the course of a vehicle stop he was assisting with – including unlawful frisks, searches, and questions – were motivated in any part by race.

² When Dr. Winter includes the Census block groups within a 1-mile radius around the 113th Precinct in her analysis, 52% of the relevant residential population is Black. Dec. 18 Tr., p. 93 lines 18-24. In contrast, the residential population of the 113th Precinct alone is 77% Black. *Id.* at p. 55 lines 22-25. Thus, rather than exaggerating the estimates of racial disparities in the Respondent officers’ vehicle stop activity, as the Court suggests, *see* Decision p. 33, the unadjusted 113th Precinct Census benchmark appears to significantly *understate* those disparities.

³ *See* Bocar A. Ba et al., The role of officer race and gender in police-civilian interactions in Chicago, *Science* 371, 696-702, p. 2 (2021) (using a similar strategy by comparing officers who worked in the same combination of month and year, day of week, shift time, and assigned “beat”).

⁴ The CCRB also notes that the NYPD’s position is that it would not be possible to provide the CCRB with assignment data. Dec. 18 Tr., p. 126 lines 12-19.

C. The Findings in the Proposed Draft Decision with Regard to the Racially Biased Policing Charges Must Be Rejected.

§ 87(2)(b) felt unfairly targeted by officers from the 113th Precinct, and for good reason. PO McCrain and PO Sinclair initiated a vehicle stop based on an air freshener that posed no threat to anyone's safety but provided the requisite pretext to stop a car with four Black men in it. After approaching the car and observing four Black men in the car – who even Respondents' counsel concedes were not "doing anything" during this car stop, Dec. 19 Tr., p. 141 line 8 – PO McCrain and PO Sinclair asked everyone to step out, asked a series of unlawful questions, and conducted several undocumented and legally unjustified frisks. After § 87(2)(b) refused to let the officers search his car, PO McCrain and PO Sinclair decided to arrest § 87(2)(b) and refused to allow § 87(2)(b) or any other passenger with a valid driver's license, to take the car so the officers could unlawfully search the car under the pretense of conducting an inventory search. A few hours later, PO Lombardi joined a second pretextual stop of § 87(2)(b) car and proceeded to unlawfully question, frisk, and search § 87(2)(b) and frisk and search his bag for no discernible reason. None of these officers are responsible for addressing minor traffic violations, and there was no indication of criminality during either vehicle stop, so the question is why PO McCrain, PO Sinclair, and PO Lombardi took so many unlawful exploratory actions during these interactions. Unfortunately, all three officers offered false and perpetually changing explanations for their conduct. However, Dr. Winter's data analysis supports the only fair and reasonable inference; that these vehicle stops were part of a larger pattern of pretextual stops of Black drivers. Once the vehicle stops were underway, the officers took a series of unlawful and unnecessary enforcement actions that the preponderance of the evidence indicates were motivated, at least in part, by racial bias.

For the above stated reasons, the preponderance of the evidence establishes that PO McCrain, PO Sinclair, and PO Lombardi took one or more law enforcement actions that were motivated, at least in part, by race. To conclude otherwise, the draft decision had to entirely ignore the majority of the circumstantial evidence regarding Respondents McCrain and Sinclair and all of the evidence regarding Respondent Lombardi. When applied correctly, there is only one fair and reasonable inference to draw: Respondents were more likely than not motivated, at least in part, by racial bias. The CCRB therefore requests the findings in the proposed draft decision with regard to Respondent Lombardi's Specification 7, Respondent McCrain's Specification 6, and Respondent Sinclair's Specification 7 be rejected and that Respondents be found guilty of taking law enforcement action based on race.

II. Remaining Specifications

The draft decision correctly found Respondent Lombardi guilty of Specifications 2-6 because the preponderance of the evidence established that he improperly questioned, frisked, and searched § 87(2)(b) searched § 87(2)(b) bag, and failed to provide § 87(2)(b) with the required business card (Decision, pp. 19-24). The Court also properly found Respondents McCrain and Sinclair guilty of Specifications 1-5 and 1-6, respectively, because the preponderance of the evidence established that they improperly questioned and frisked the three other occupants of § 87(2)(b) car, questioned § 87(2)(b) and seized and searched § 87(2)(b) car (Decision, pp. 7-19). As also discussed above in section I.A.ii, the conclusions of the Court are supported by law and the evidence.

The draft decision erred, however, in finding Respondent Lombardi not guilty of frisking a bag belonging to § 87(2)(b) Specification 1 (Decision p. 22). The Court relies on the fact that "a fellow officer, who was in closer proximity to the bag in question, alerted Respondent Lombardi to it," (Decision p. 22), but as PO Lombardi acknowledged, in PO Lombardi's statement to the CCRB, he said the only reasons he asked § 87(2)(b) to step out of the car were the "very slight movement" § 87(2)(b) made when PO Lombardi was approaching the vehicle, Dec. 19 Tr., p. 116 lines 6-8, – which (1) cannot be seen on BWC, *see* CCRB Ex. 1 at 1:00-2:00, and (2) PO Lombardi admits could have been an adjusting motion,

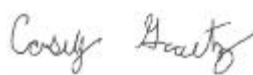
Dec. 19 Tr., p. 122 lines 10-15 – and the fact that § 87(2)(b) did not have an ID, Dec. 19 Tr., pp. 128-30. PO Lombardi did not mention a fellow officer saying “bag” in the statement he made to the CCRB. That reason for frisking the bag was conveniently brought up for the first time at trial.

PO Lombardi testified that he frisked the bag because he noticed something heavy in the bag and saw the outline of a rectangle that was six to seven inches long. Dec. 19 Tr., p. 131 line 15 - p. 132 line 10. Upon feeling a dense hard rectangle, PO Lombardi opened the bag to search the bag for the rectangle that PO Lombardi thought could be a firearm, even though he had not felt an L shape. The object was a portable charger, exactly what § 87(2)(b) had said was in the bag. Dec. 19 Tr., p. 132 line 11 - p. 133 line 17. PO Lombardi’s observation of a heavy rectangular object was innocuous, as the shape could be produced by a myriad of commonplace objects, and was insufficient to supply the requisite reasonable suspicion that § 87(2)(b) could possess a firearm in his bag. *See Floyd v. City of New York*, 959 F.Supp.2d at 614, 631 n.489 (holding that “[t]he outline of a commonly carried object such as a wallet or cell phone does not justify a stop or frisk,” and that a cell phone in a stopped civilian’s jacket pocket did not create a “suspicious bulge”). The CCRB therefore requests the finding in the proposed draft decision regarding Respondent Lombardi’s Specification 1 be rejected and that Respondent be found guilty.

CONCLUSION

The Court found Respondent Lombardi guilty of Specifications 2-6, Respondent McCrain guilty of Specifications 1-5, and Respondent Sinclair guilty of Specifications 1-6. CCRB respectfully requests that you accept ADCT Facio-Lince’s findings on these specifications. However, CCRB respectfully submits that the Court erred in finding Respondent Lombardi not guilty of Specifications 1 and 7, Respondent McCrain not guilty of Specification 6, and Respondent Sinclair not guilty of Specification 7. As such, CCRB requests the findings in the proposed draft decision with regard to Respondent Lombardi’s Specifications 1 and 7, Respondent McCrain’s Specification 6, and Respondent Sinclair’s Specification 7 be rejected and that Respondents be found guilty on all charges, and that a penalty of Termination be imposed.

Respectfully submitted,



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